



CHAPTER cviii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Liverpool and Poole. A.D. 1905.
—
[4th August 1905.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Local Government Act 1888 :

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to the Liverpool (Extension) Order 1905 :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2.—(1) Ten days at least before the ordinary day of election of councillors for the city of Liverpool in each year until two additional councillors and one additional alderman have for the first time been elected in pursuance of this section the lord mayor of Liverpool shall ascertain the number of citizens whose names appear on the ward roll for the Fazakerley Ward. Special pro-
visions relat-
ing to the
Liverpool
(Extension)
Order 1905
as regards
increased re-
presentation
of Fazaker-
ley Ward.

When the lord mayor has ascertained the said number to be—

(a) not less than one thousand and not more than two thousand, or

(b) more than two thousand,

he shall in each case cause notice to be given by placard posted throughout the ward to the effect that at the next ordinary day



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1. The Orders as altered and set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
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2.—(1) Ten days at least before the ordinary day of election of councillors for the city of Liverpool in each year until two additional councillors and one additional alderman have for the first time been elected in pursuance of this section the lord mayor of Liverpool shall ascertain the number of citizens whose names appear on the ward roll for the Fazakerley Ward. Special pro-
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When the lord mayor has ascertained the said number to be—

(a) not less than one thousand and not more than two thousand, or

(b) more than two thousand,

he shall in each case cause notice to be given by placard posted throughout the ward to the effect that at the next ordinary day

A.D. 1905. of election of councillors there will be an election of one additional councillor for the Fazakerley Ward.

In each case also the town clerk of the city of Liverpool shall insert the necessary particulars in the notice of election to be prepared signed and published by him in pursuance of section fifty-four of the Municipal Corporations Act 1882.

(2) When the lord mayor has ascertained the number aforesaid to be more than two thousand he shall set forth in the notice to be given by placards in pursuance of subsection 1 of this section the fact that at the next ordinary day of election of aldermen there will be an election of an additional alderman.

(3) The lord mayor the town clerk and every other person having powers to exercise or duties to perform in connection with the election of councillors or of aldermen shall to the extent of the said powers and duties do all such things as are necessary to give effect to this section and to the election of a councillor or of an alderman in pursuance of this section.

(4) If any difficulty arises in giving effect to this section or in the election of a councillor or alderman in pursuance of this section the Local Government Board may by order do or authorise anything which appears to them to be necessary or expedient for giving effect to this section or for the proper holding of the election and every such order shall have effect as if enacted in this Act.

(5) So soon as the third councillor has been elected the term of office and the retirement of each of the councillors representing the Fazakerley Ward shall notwithstanding anything in the Liverpool (Extension) Order 1905 be determined by the city council in the manner provided by the Municipal Corporations Act 1882.

Short title.

3. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1905.

A.D. 1905. of election of councillors there will be an election of one additional councillor for the Fazakerley Ward.

In each case also the town clerk of the city of Liverpool shall insert the necessary particulars in the notice of election to be prepared signed and published by him in pursuance of section fifty-four of the Municipal Corporations Act 1882.

(2) When the lord mayor has ascertained the number aforesaid to be more than two thousand he shall set forth in the notice to be given by placards in pursuance of subsection 1 of this section the fact that at the next ordinary day of election of aldermen there will be an election of an additional alderman.

(3) The lord mayor the town clerk and every other person having powers to exercise or duties to perform in connection with the election of councillors or of aldermen shall to the extent of the said powers and duties do all such things as are necessary to give effect to this section and to the election of a councillor or of an alderman in pursuance of this section.

(4) If any difficulty arises in giving effect to this section or in the election of a councillor or alderman in pursuance of this section the Local Government Board may by order do or authorise anything which appears to them to be necessary or expedient for giving effect to this section or for the proper holding of the election and every such order shall have effect as if enacted in this Act.

(5) So soon as the third councillor has been elected the term of office and the retirement of each of the councillors representing the Fazakerley Ward shall notwithstanding anything in the Liverpool (Extension) Order 1905 be determined by the city council in the manner provided by the Municipal Corporations Act 1882.

Short title.

3. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1905.

SCHEDULE.

A.D. 1905.

CITY OF LIVERPOOL.

*Provisional Order made in pursuance of Sections 54 and 59
of the Local Government Act 1888.**Liverpool
Order.*

To the Mayor Aldermen and Citizens of the City of Liverpool ;—
 To the Justices of the Peace for the said City ;—
 To the Court of Quarter Sessions for the said City ;—
 To the Justices of the Peace for the County Palatine of Lancaster in
 Quarter Sessions assembled ;—
 To the County Council of the County Palatine of Lancaster ;—
 To the Rural District Council of Sefton ;—
 To the Guardians of the Poor of the West Derby Union ;—
 To the Parish Council of Fazakerley ;—
 To the Overseers of the Poor of the Township of Fazakerley ;—
 And to all others whom it may concern.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any Borough and by such Order to divide or alter any electoral division ;

51 & 52 Vict.
c. 41.

And whereas the City of Liverpool is a County Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Citizens of the City of Liverpool and act by the Council of the said City which now consists of the Lord Mayor (who is also a Councillor) thirty-four Aldermen and one hundred and one other Councillors and the said City is for the purpose of the election of Councillors divided into thirty-four wards ;

And whereas the said City is an Urban Sanitary District of which the Mayor Aldermen and Citizens acting by the Council are the Urban Sanitary Authority ;

And whereas in pursuance of the Education Act 1902 the Council of the said City are the Local Education Authority ;

2 Edw. 7. c. 42.

And whereas the said City has a separate Court of Quarter Sessions commission of the peace police force recorder and coroner and an ancient court of record known as the Court of Passage ;

SCHEDULE.

A.D. 1905.

CITY OF LIVERPOOL.

*Provisional Order made in pursuance of Sections 54 and 59
of the Local Government Act 1888.**Liverpool
Order.*

To the Mayor Aldermen and Citizens of the City of Liverpool ;—
 To the Justices of the Peace for the said City ;—
 To the Court of Quarter Sessions for the said City ;—
 To the Justices of the Peace for the County Palatine of Lancaster in
 Quarter Sessions assembled ;—
 To the County Council of the County Palatine of Lancaster ;—
 To the Rural District Council of Sefton ;—
 To the Guardians of the Poor of the West Derby Union ;—
 To the Parish Council of Fazakerley ;—
 To the Overseers of the Poor of the Township of Fazakerley ;—
 And to all others whom it may concern.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any Borough and by such Order to divide or alter any electoral division ;

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And whereas the City of Liverpool is a County Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Citizens of the City of Liverpool and act by the Council of the said City which now consists of the Lord Mayor (who is also a Councillor) thirty-four Aldermen and one hundred and one other Councillors and the said City is for the purpose of the election of Councillors divided into thirty-four wards ;

And whereas the said City is an Urban Sanitary District of which the Mayor Aldermen and Citizens acting by the Council are the Urban Sanitary Authority ;

And whereas in pursuance of the Education Act 1902 the Council of the said City are the Local Education Authority ;

2 Edw. 7. c. 42.

And whereas the said City has a separate Court of Quarter Sessions commission of the peace police force recorder and coroner and an ancient court of record known as the Court of Passage ;

A.D. 1905.

*Liverpool
Order.*

And whereas the unrepealed provisions of the Local Acts mentioned in Parts I. II. and III. of the schedule to this Order and of the Confirmation Acts mentioned in Parts IV. V. and VI. of the said schedule so far as the last-mentioned Acts relate to the Provisional Orders mentioned in that schedule are in force in the said City;

And whereas the Urban Sanitary Authority have adopted the provisions of—

53 & 54 Vict. c. 31.

(a) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict. c. 59.

(b) Parts II. and III. of the Public Health Acts Amendment Act 1890;

53 & 54 Vict. c. 70.

(c) Part III. of the Housing of the Working Classes Act 1890;

54 & 55 Vict. c. 22.

(d) The Museums and Gymnasiums Act 1891; and

55 & 56 Vict. c. 57.

(e) The Private Street Works Act 1892;

and those provisions are accordingly in force in the said City;

9 & 10 Vict. c. 74.

10 & 11 Vict. c. 61.

41 & 42 Vict. c. 14.

45 & 46 Vict. c. 30.

59 & 60 Vict. c. 59.

62 & 63 Vict. c. 29.

And whereas the Baths and Washhouses Acts 1846 to 1899 are in force in the said City;

And whereas the Township of Fazakerley is a contributory place in the Rural District of Sefton and is subject to the jurisdiction of the Rural District Council of Sefton;

And whereas the said Rural District Council have adopted the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts and those provisions are accordingly in force in the said Rural District;

And whereas the said Township of Fazakerley is included in the West Derby Union and is within the meaning of the Local Government Act 1894 a Rural Parish for which a Parish Council has been established;

And whereas in pursuance of the Education Act 1902 the said Township of Fazakerley forms part of the area of the County Council of the County Palatine of Lancaster as the Local Education Authority;

And whereas the said Township of Fazakerley is included in the Crosby Electoral Division of the County Palatine of Lancaster;

51 & 52 Vict.
c. 41.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

Definitions.

Art. I.—In this Order—

(1) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred and five;

(2) The expression "the existing City" means the City of Liverpool as it existed immediately prior to the commencement of this Order;

(3) The expression "the City" means the existing City as extended by this Order;

A.D. 1905.

*Liverpool
Order.*

And whereas the unrepealed provisions of the Local Acts mentioned in Parts I. II. and III. of the schedule to this Order and of the Confirmation Acts mentioned in Parts IV. V. and VI. of the said schedule so far as the last-mentioned Acts relate to the Provisional Orders mentioned in that schedule are in force in the said City;

And whereas the Urban Sanitary Authority have adopted the provisions of—

53 & 54 Vict. c. 31.

(a) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict. c. 59.

(b) Parts II. and III. of the Public Health Acts Amendment Act 1890;

53 & 54 Vict. c. 70.

(c) Part III. of the Housing of the Working Classes Act 1890;

54 & 55 Vict. c. 22.

(d) The Museums and Gymnasiums Act 1891; and

55 & 56 Vict. c. 57.

(e) The Private Street Works Act 1892;

and those provisions are accordingly in force in the said City;

9 & 10 Vict. c. 74.

10 & 11 Vict. c. 61.

41 & 42 Vict. c. 14.

45 & 46 Vict. c. 30.

59 & 60 Vict. c. 59.

62 & 63 Vict. c. 29.

And whereas the Baths and Washhouses Acts 1846 to 1899 are in force in the said City;

And whereas the Township of Fazakerley is a contributory place in the Rural District of Sefton and is subject to the jurisdiction of the Rural District Council of Sefton;

And whereas the said Rural District Council have adopted the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts and those provisions are accordingly in force in the said Rural District;

And whereas the said Township of Fazakerley is included in the West Derby Union and is within the meaning of the Local Government Act 1894 a Rural Parish for which a Parish Council has been established;

And whereas in pursuance of the Education Act 1902 the said Township of Fazakerley forms part of the area of the County Council of the County Palatine of Lancaster as the Local Education Authority;

And whereas the said Township of Fazakerley is included in the Crosby Electoral Division of the County Palatine of Lancaster;

51 & 52 Vict.
c. 41.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

Definitions.

Art. I.—In this Order—

(1) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred and five;

(2) The expression "the existing City" means the City of Liverpool as it existed immediately prior to the commencement of this Order;

(3) The expression "the City" means the existing City as extended by this Order;

- (4) The expression "the Corporation" means the Mayor Aldermen and Citizens of the existing City or of the City (as the context may require) acting by the Council ;
- (5) The expressions "the County" and "the County Council" mean respectively the County Palatine of Lancaster and the County Council of that County Palatine ;
- (6) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Sefton and the Rural District Council of that district ;
- (7) The expression "the City maps" means the two maps each marked "Map of the City of Liverpool as extended 1905" and sealed with the official seal of the Local Government Board ;
- (8) The expression "the added area" means the Township of Fazakerley the area whereof is coloured blue on the City maps ;
- (9) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 ;
- (10) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same ;
- (11) The expression "the Local Acts" means the Acts mentioned in Parts I. II. and III. of the Schedule to this Order ; and
- (12) The expressions "the Confirmation Acts" and "the Provisional Orders" mean respectively the Confirmation Acts and the Provisional Orders mentioned in Parts IV. V. and VI. of the Schedule to this Order and the expressions "the Confirmation Act of 1895" and "the Confirmation Act of 1902" mean respectively the Local Government Board's Provisional Orders Confirmation (No. 10) Act 1895 Session 2 and the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1902.

A.D. 1905.
 ———
 Liverpool
 Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and five :

Commence-
 ment of Order.

Provided that for the purposes of the parish burgess list and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county registers to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on

Date of opera-
 tion of Order
 for parish bur-
 gess lists &c. ;
 51 Vict. c. 10.

- (4) The expression "the Corporation" means the Mayor Aldermen and Citizens of the existing City or of the City (as the context may require) acting by the Council ; A.D. 1905.
Liverpool
Order.
- (5) The expressions "the County" and "the County Council" mean respectively the County Palatine of Lancaster and the County Council of that County Palatine ;
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- (7) The expression "the City maps" means the two maps each marked "Map of the City of Liverpool as extended 1905" and sealed with the official seal of the Local Government Board ;
- (8) The expression "the added area" means the Township of Fazakerley the area whereof is coloured blue on the City maps ;
- (9) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 ;
- (10) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same ;
- (11) The expression "the Local Acts" means the Acts mentioned in Parts I. II. and III. of the Schedule to this Order ; and
- (12) The expressions "the Confirmation Acts" and "the Provisional Orders" mean respectively the Confirmation Acts and the Provisional Orders mentioned in Parts IV. V. and VI. of the Schedule to this Order and the expressions "the Confirmation Act of 1895" and "the Confirmation Act of 1902" mean respectively the Local Government Board's Provisional Orders Confirmation (No. 10) Act 1895 Session 2 and the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1902.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and five : Commence-
ment of Order.

Provided that for the purposes of the parish burgess list and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county registers to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on

Date of opera-
tion of Order
for parish bur-
gess lists &c. ;
51 Vict. c. 10.

A.D. 1905. the ordinary day of election in the year one thousand nine hundred and five and of the revision of the basis or standard of county rate this Order shall operate from the date of the Act of Parliament confirming this Order:

*Liverpool
Order.*

Date of operation for grants from Local Taxation Account.
53 & 54 Vict.
c. 60.

Extension of City.

Provided also that for the purposes of Sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 the City shall be deemed not to have been altered until after the Thirty-first day of March One thousand nine hundred and six.

Art. III.—(1) The boundary of the existing City the area whereof is coloured pink on the City maps shall be altered so as to include in addition to that area so much of the Rural District as comprises the Township of Fazakerley.

(2) The boundary of the City shall be that shown by the red line on the City maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and (subject to the provisions of this Order) for all other purposes be the City and shall for the purposes of the Act of 1888 and for all other purposes be the County Borough.

Deposit of maps.

Art. IV.—(1) One of the City maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing City at his office within fourteen days after the date of this Order. Copies of the City map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the Board of Inland Revenue and to the Board of Agriculture and Fisheries.

Copies of map to be evidence.

(2) Copies of or extracts from the City map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as relates to the boundary of the City and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be demanded by the Corporation. All fees so received shall be carried to the credit of the city fund.

Powers and duties of justices &c. extended.

Art. V. The powers and duties of the quarter sessions recorder clerk of the peace and coroner of the existing City of the Court of Passage and of the judge registrar and other officers thereof of the justices of the peace appointed for the existing City of the clerk to those justices and of the police constables and other peace officers of the existing City shall extend to and apply throughout the City:

Provided that every person committing an offence in any part of the added area prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to

A.D. 1905. the ordinary day of election in the year one thousand nine hundred and five and of the revision of the basis or standard of county rate this Order shall operate from the date of the Act of Parliament confirming this Order :

*Liverpool
Order.*

Date of operation for grants from Local Taxation Account.
53 & 54 Vict.
c. 60.

Extension of City.

Provided also that for the purposes of Sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 the City shall be deemed not to have been altered until after the Thirty-first day of March One thousand nine hundred and six.

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Copies of map to be evidence.

(2) Copies of or extracts from the City map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as relates to the boundary of the City and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be demanded by the Corporation. All fees so received shall be carried to the credit of the city fund.

Powers and duties of justices &c. extended.

Art. V. The powers and duties of the quarter sessions recorder clerk of the peace and coroner of the existing City of the Court of Passage and of the judge registrar and other officers thereof of the justices of the peace appointed for the existing City of the clerk to those justices and of the police constables and other peace officers of the existing City shall extend to and apply throughout the City :

Provided that every person committing an offence in any part of the added area prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made :

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to

any matter arising in or concerning any part of the added area may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

A.D. 1905.

*Liverpool
Order.*

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added area shall be deemed to have always been part of the City and the town clerk of the existing City shall be the town clerk of the City.

Parish burgess
lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk or the clerk to the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk to the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Art. VII. The number of Councillors of the City shall be increased from one hundred and two to one hundred and three.

Number of
Councillors.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into
wards.

(1) For the purposes of the election of Councillors the City shall be divided into thirty-five wards:

(2) The thirty-four existing wards and the number of Councillors respectively apportioned thereto shall remain unaltered:

(3) The added area shall form a new ward to be termed the Fazakerley Ward:

(4) One Councillor shall be assigned to the new ward constituted by subdivision (3) of this Article.

any matter arising in or concerning any part of the added area may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

A.D. 1905.

Liverpool
Order.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added area shall be deemed to have always been part of the City and the town clerk of the existing City shall be the town clerk of the City.

Parish burgess
lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk or the clerk to the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk to the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

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(3) The added area shall form a new ward to be termed the Fazakerley Ward:

(4) One Councillor shall be assigned to the new ward constituted by subdivision (3) of this Article.

A.D. 1905.

*Liverpool
Order.*First election
of a Councillor
for the new
ward.

Art. IX. The first election of a Councillor for the new ward constituted by this Order shall be held on the First day of November One thousand nine hundred and five and the Lord Mayor of the existing City shall be the returning officer at the election for that ward. Provided that the Lord Mayor of the existing City may appoint some other person to act as returning officer at the election for the ward.

Retirement of
the Councillor
for the new
ward.

Art. X. The Councillor elected in the year one thousand nine hundred and five for the new ward constituted by this Order shall retire on the First day of November One thousand nine hundred and eight.

Local Acts
and Orders.

Art. XI.—(1) Subject to the provisions of this Order—

(i) The unrepealed provisions of the Local Acts and of the Confirmation Acts so far as the last-mentioned Acts respectively relate to the Provisional Orders and of any other Local Act affecting the existing City or the Corporation which may have already been passed or may be passed before the commencement of this Order and of any Provisional Order affecting the existing City which may be confirmed during the present Session of Parliament as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof:

(ii) The unrepealed provisions of the Confirmation Act of 1895 and of the City of Liverpool Order 1895 as thereby confirmed and the unrepealed provisions of the Confirmation Act of 1902 and of the Liverpool Extension Order 1902 as thereby confirmed shall so far and in such manner as the said provisions are now in force continue to apply and have effect as if this Order had not been made.

(2) Sections 61 to 70 and 223 225 and 226 of the Liverpool Sanitary Act 1846 shall not be in force within or apply to any part of the added area.

Byelaws &c.

Art. XII.—(1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed.

(2) All byelaws and regulations made by the County Council or the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added area shall on that date cease to be in force except as regards any work commenced before that date or any work for which plans shall either have been approved by the Rural

A.D. 1905.

*Liverpool
Order.*First election
of a Councillor
for the new
ward.

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Retirement of
the Councillor
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Local Acts
and Orders.

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(ii) The unrepealed provisions of the Confirmation Act of 1895 and of the City of Liverpool Order 1895 as thereby confirmed and the unrepealed provisions of the Confirmation Act of 1902 and of the Liverpool Extension Order 1902 as thereby confirmed shall so far and in such manner as the said provisions are now in force continue to apply and have effect as if this Order had not been made.

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(2) All byelaws and regulations made by the County Council or the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added area shall on that date cease to be in force except as regards any work commenced before that date or any work for which plans shall either have been approved by the Rural

Council before that date or shall have been sent to the surveyor or clerk to the Rural Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply for a period of two years from the commencement of this Order or until the completion of the work whichever shall first happen in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Rural Council and the Rural District. Provided that any proceedings which might have been taken by the County Council or the Rural Council against any person for any offence committed before the commencement of this Order against any byelaws and regulations made by either of the said Councils or their predecessors and in force on that date in the added area may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that Council.

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*Liverpool
Order.*

Art. XIII.—(1) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

Town clerk
and other
officers con-
tinued.

(2) The auditors who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the city auditors until the next ordinary day of election of city auditors.

City auditors.

Art. XIV.—(1) Every clerk to justices and county coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the general rate of the City and in every other case out of the city fund of the City or out of moneys borrowed under Article XXV. of this Order and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications.

Compensation
to existing
officers.

Council before that date or shall have been sent to the surveyor or clerk to the Rural Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply for a period of two years from the commencement of this Order or until the completion of the work whichever shall first happen in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Rural Council and the Rural District. Provided that any proceedings which might have been taken by the County Council or the Rural Council against any person for any offence committed before the commencement of this Order against any byelaws and regulations made by either of the said Councils or their predecessors and in force on that date in the added area may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that Council.

A.D. 1905.

*Liverpool
Order.*

Art. XIII.—(1) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

Town clerk
and other
officers con-
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City auditors.

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Compensation
to existing
officers.

A.D. 1905.

*Liverpool
Order.*

(2) For the purposes of subdivision (1) of this Article any such officer or servant whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence thereof and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Actions &c.
not to abate.

Art. XV.—(1) If at the commencement of this Order any action or proceeding or any cause of action or proceeding is pending or existing by or against the Rural Council in relation exclusively to any part of the added area the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the City.

Saving for
contracts &c.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added area shall be of as full force and effect against or in favour of the Corporation of the City and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Corporation
property &c.

Art. XVI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing City shall be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing City and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing City shall from and after that date attach to them in respect of the City.

Art. XVII. Subject to the provisions of this Order—

Property &c. of
Rural Council.

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the added area shall by virtue of this Order be transferred to vested in and attach to the Corporation as Urban Sanitary Authority and any property and liabilities vested in or attached to the Rural Council in relation to any part of the added area conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888 :

(2) The Rural Council shall cease to exercise any powers or have any duties within any part of the added area :

Arrears of
rates &c.

(3) All arrears of rates made by the Overseers of the Poor of the Township of Fazakerley for the purposes of the Public Health Acts or for highway expenses which at the commencement of

A.D. 1905.

*Liverpool
Order.*

(2) For the purposes of subdivision (1) of this Article any such officer or servant whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence thereof and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Actions &c.
not to abate.

Art. XV.—(1) If at the commencement of this Order any action or proceeding or any cause of action or proceeding is pending or existing by or against the Rural Council in relation exclusively to any part of the added area the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the City.

Saving for
contracts &c.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added area shall be of as full force and effect against or in favour of the Corporation of the City and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Corporation
property &c.

Art. XVI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing City shall be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing City and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing City shall from and after that date attach to them in respect of the City.

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(2) The Rural Council shall cease to exercise any powers or have any duties within any part of the added area :

Arrears of
rates &c.

(3) All arrears of rates made by the Overseers of the Poor of the Township of Fazakerley for the purposes of the Public Health Acts or for highway expenses which at the commencement of

this Order are due or owing in respect of hereditaments in the added area may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied and the balances if any shall be paid to the Corporation:

A.D. 1905.

*Liverpool
Order.*

- (4) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction.

Adaptation of
provisions as
to adjustment.

Art. XVIII. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged on the general rate of the existing City shall by virtue of this Order be charged upon the general rate of the City and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the city fund of the existing City shall by virtue of this Order be charged upon the city fund of the City and all such sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Mortgage debts
of Corporation.

Art. XIX. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 Parts II. and III. of the Public Health Acts Amendment Act 1890 Part III. of the Housing of the Working Classes Act 1890 the Museums and Gymnasiums Act 1891 and the Private Street Works Act 1892 shall be in force in and apply to the City as if the same had been adopted therein.

Adoptive Acts.

Art. XX. Subject to the provisions of any order which the Local Government Board may hereafter make the provisions of any order heretofore made by the Local Government Board and conferring upon the council

Powers of City
Council under
Section 33 of
Act of 1894.

this Order are due or owing in respect of hereditaments in the added area may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied and the balances if any shall be paid to the Corporation:

A.D. 1905.

*Liverpool
Order.*

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Art. XVIII. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged on the general rate of the existing City shall by virtue of this Order be charged upon the general rate of the City and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the city fund of the existing City shall by virtue of this Order be charged upon the city fund of the City and all such sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

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Powers of City
Council under
Section 33 of
Act of 1894.

A.D. 1905. of the existing City any of the matters mentioned in Section 33 of the Act
 — of 1894 and in such order shall be deemed to have effect as if any reference
Liverpool in the said provisions to a parish wholly comprised within the existing City
Order. extended and applied to any parish wholly comprised within the City.

County police. Art. XXI.—(1) At the commencement of this Order such members if any
 of the police force of the County as shall be determined by an agreement to be
 made as soon as practicable after the date of the Act of Parliament confirming
 this Order between the Standing Joint Committee of the County and the
 Watch Committee of the existing City or in default of any such agreement
 as shall be determined by a Secretary of State shall be transferred to and
 become part of the police force of the City and any member of the county
 police force so transferred shall hold office upon the same tenure and upon
 the same terms and conditions as if this Order had not been made and while
 he performs the same or similar duties his remuneration emoluments and
 allowances and the pension (if any) to which he is entitled shall not be less
 than they would have been if this Order had not been made.

53 & 54 Vict. (2) The provisions of Section 15 (2) of the Police Act 1890 shall extend
 c. 45. and apply to and in relation to any member of the police force transferred
 under the powers of this Article as if that member had removed with the
 written sanction of the Chief Constable of the County.

Adjustment of Art. XXII.—(1) In any case where the extension of the City by this
 financial rela- Order shall affect the distribution of the proceeds of the local taxation
 tions between licenses of the estate duty and of the Local Taxation (Customs and Excise)
 County and duties between the County and the City or between the County or the City
 County on the one hand and any other County Borough on the other hand or
 Boroughs. any financial relations or questions between those areas or any adjustment
 which has been made in regard to the said distribution and financial
 relations or questions equitable adjustments may be made between the
 areas interested.

(2) Any such adjustment may be made by an agreement between the
 Council of the County and the Councils of the County Boroughs affected
 before the Thirtieth day of September One thousand nine hundred and
 six and in default of any such agreement by the Local Government Board
 or if that Board think fit by an arbitrator appointed by them.

(3) For the purposes of the said adjustments the provisions of the Act
 of 1888 relating to adjustments between Administrative Counties and County
 Boroughs shall apply with the necessary modifications and the Local Govern-
 ment Board or an arbitrator appointed by them as the case may be shall be
 substituted in those provisions for the Commissioners appointed under the Act
 of 1888 and notwithstanding anything in the provisions of this Order or of
 the Act of 1888 any such adjustment and the determination of any matter
 incidental or in relation thereto or consequent thereon shall when made by
 the Local Government Board be deemed to be made by them otherwise than
 as arbitrators and any arbitrator appointed by them shall be deemed to be

A.D. 1905. of the existing City any of the matters mentioned in Section 33 of the Act
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 of the police force of the County as shall be determined by an agreement to be
 made as soon as practicable after the date of the Act of Parliament confirming
 this Order between the Standing Joint Committee of the County and the
 Watch Committee of the existing City or in default of any such agreement
 as shall be determined by a Secretary of State shall be transferred to and
 become part of the police force of the City and any member of the county
 police force so transferred shall hold office upon the same tenure and upon
 the same terms and conditions as if this Order had not been made and while
 he performs the same or similar duties his remuneration emoluments and
 allowances and the pension (if any) to which he is entitled shall not be less
 than they would have been if this Order had not been made.

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(2) Any such adjustment may be made by an agreement between the
 Council of the County and the Councils of the County Boroughs affected
 before the Thirtieth day of September One thousand nine hundred and
 six and in default of any such agreement by the Local Government Board
 or if that Board think fit by an arbitrator appointed by them.

(3) For the purposes of the said adjustments the provisions of the Act
 of 1888 relating to adjustments between Administrative Counties and County
 Boroughs shall apply with the necessary modifications and the Local Govern-
 ment Board or an arbitrator appointed by them as the case may be shall be
 substituted in those provisions for the Commissioners appointed under the Act
 of 1888 and notwithstanding anything in the provisions of this Order or of
 the Act of 1888 any such adjustment and the determination of any matter
 incidental or in relation thereto or consequent thereon shall when made by
 the Local Government Board be deemed to be made by them otherwise than
 as arbitrators and any arbitrator appointed by them shall be deemed to be

an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly: A.D. 1905.

*Liverpool
Order.*

Provided—

- (a) that in lieu of sub-section (6) of Section 61 of the Act of 1888 sub-sections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of those inquiries; and
- (b) that sub-section (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

Art. XXIII. For the purposes of and subject to the provisions of the Elementary Education Acts 1870 to 1902—

Transfer of
school site in
added area.

- (1) The site for a public elementary school situate within the added area which has been acquired by the County Council as the local education authority shall by virtue of this Order vest in and be transferred to the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said site shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority:

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision:

- (2) The liability for repayment of so much of any loan raised by the County Council as the local education authority exclusively in respect of the acquisition of the said site as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order attach and be transferred to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the city fund and city rate of the City and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:

Loan liabilities
in respect of
transferred site.

- (3) Any byelaws in force in the existing City at the commencement of this Order shall thenceforth apply to the City until revoked or altered and from and after that date any byelaws then in force in any part of the added area shall cease to be in force.

Education
byelaws.

an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly: A.D. 1905.

*Liverpool
Order.*

Provided—

- (a) that in lieu of sub-section (6) of Section 61 of the Act of 1888 sub-sections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of those inquiries; and
- (b) that sub-section (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

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school site in
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- (1) The site for a public elementary school situate within the added area which has been acquired by the County Council as the local education authority shall by virtue of this Order vest in and be transferred to the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said site shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority:

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision:

- (2) The liability for repayment of so much of any loan raised by the County Council as the local education authority exclusively in respect of the acquisition of the said site as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order attach and be transferred to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the city fund and city rate of the City and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:

Loan liabilities
in respect of
transferred site.

- (3) Any byelaws in force in the existing City at the commencement of this Order shall thenceforth apply to the City until revoked or altered and from and after that date any byelaws then in force in any part of the added area shall cease to be in force.

Education
byelaws.

A.D. 1905.

*Liverpool
Order.*Differential
rating.

Art. XXIV.—(1) During a period of ten years from the commencement of this Order in respect of any hereditament in the added area—

The general rate leviable under the Liverpool Corporation Act 1893 shall not exceed two shillings and elevenpence halfpenny on each pound of the rateable value of the hereditament;

The library and museum rate leviable under the Liverpool Corporation Act 1900 shall not exceed one penny halfpenny on each pound of the rateable value of the hereditament; and

The watch rate leviable under the Municipal Corporations Acts shall not exceed one penny on each pound of the rateable value of the hereditament.

(2) During the said period of ten years no rate for the purpose of defraying any expenses of the Corporation shall be levied in the added area other than a rate mentioned in subdivision (1) of this Article a water rate a rate levied for the purpose of paying the expenses of the Corporation acting as the local education authority a rate in respect of private improvement expenses or a rate for the purpose of defraying any expenses of the Corporation in pursuance of any public general Act which may hereafter be passed.

Borrowing
powers for
purposes of
Order.

Art. XXV. For the purpose of defraying any expenses under this Order which in the opinion of the Local Government Board are properly chargeable to capital and which may include such reasonable costs of the Rural Council as may be sanctioned by the Local Government Board in respect of this Order and of the inquiry preliminary thereto whether in promoting or opposing this Order the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the city fund or city rate or the general rate for the purpose of securing the repayment of any moneys so borrowed and the interest thereon Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Local Government Board may determine.

Electoral
Divisions and
County Coun-
cillors.

Art. XXVI.—(1) Subject to the provisions of Section 54 of the Act of 1888 the Crosby Electoral Division of the County as diminished by the extension of the existing City shall continue to be an electoral division of the County and the person who immediately before the commencement of this Order is the County Councillor representing that electoral division shall continue to represent that division as if he had been originally elected to represent that division as hereby altered.

(2) No County Alderman or County Councillor in office immediately before the commencement of this Order shall be deemed to lose his qualification by reason of the transfer of the added area to the City by this Order.

County rate
basis.

Art. XXVII.—(1) Subject to any future revision the basis or standard of county rate for the County shall be revised by the omission therefrom of

A.D. 1905.

*Liverpool
Order.*Differential
rating.

Art. XXIV.—(1) During a period of ten years from the commencement of this Order in respect of any hereditament in the added area—

The general rate leviable under the Liverpool Corporation Act 1893 shall not exceed two shillings and elevenpence halfpenny on each pound of the rateable value of the hereditament;

The library and museum rate leviable under the Liverpool Corporation Act 1900 shall not exceed one penny halfpenny on each pound of the rateable value of the hereditament; and

The watch rate leviable under the Municipal Corporations Acts shall not exceed one penny on each pound of the rateable value of the hereditament.

(2) During the said period of ten years no rate for the purpose of defraying any expenses of the Corporation shall be levied in the added area other than a rate mentioned in subdivision (1) of this Article a water rate a rate levied for the purpose of paying the expenses of the Corporation acting as the local education authority a rate in respect of private improvement expenses or a rate for the purpose of defraying any expenses of the Corporation in pursuance of any public general Act which may hereafter be passed.

Borrowing
powers for
purposes of
Order.

Art. XXV. For the purpose of defraying any expenses under this Order which in the opinion of the Local Government Board are properly chargeable to capital and which may include such reasonable costs of the Rural Council as may be sanctioned by the Local Government Board in respect of this Order and of the inquiry preliminary thereto whether in promoting or opposing this Order the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the city fund or city rate or the general rate for the purpose of securing the repayment of any moneys so borrowed and the interest thereon Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Local Government Board may determine.

Electoral
Divisions and
County Coun-
cillors.

Art. XXVI.—(1) Subject to the provisions of Section 54 of the Act of 1888 the Crosby Electoral Division of the County as diminished by the extension of the existing City shall continue to be an electoral division of the County and the person who immediately before the commencement of this Order is the County Councillor representing that electoral division shall continue to represent that division as if he had been originally elected to represent that division as hereby altered.

(2) No County Alderman or County Councillor in office immediately before the commencement of this Order shall be deemed to lose his qualification by reason of the transfer of the added area to the City by this Order.

County rate
basis.

Art. XXVII.—(1) Subject to any future revision the basis or standard of county rate for the County shall be revised by the omission therefrom of

the amount appearing in that basis or standard as the total annual value of the property in the Township of Fazakerley.

A.D. 1905.

Liverpool
Order.

(2) The Overseers of the Poor of the Township of Fazakerley shall pay to the Corporation all moneys which represent the proceeds of any rate or part of a rate levied by the Overseers of the Poor in the added area in respect of the year ending the thirty-first day of March One thousand nine hundred and six in pursuance of an order of the Guardians of the Poor of the West Derby Union or of a precept issued by the County Council to the Overseers of the Poor for the purpose of county contributions and which have not at the commencement of this Order been paid to the Guardians of the Poor or the County Council as the case may be.

Art. XXVIII.—(1) The person who immediately before the commencement of this Order shall hold the office of Rural District Councillor and Guardian of the Poor for the Township of Fazakerley shall cease to act as a member of the Rural Council but shall continue to act as a member of the Board of Guardians of the West Derby Union as if he had been elected as a Guardian for the said Township and he shall remain in office until the date on which he would have retired if this Order had not been made.

Rural District
Councillor.

(2) Subject to the provisions of this Order the Parish Council of Fazakerley shall cease to exist and any powers and duties transferred by the Act of 1894 to the Parish Council or Parish Meeting of the Township of Fazakerley shall be vested in exerciseable by and imposed on the persons or authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added area had been included in an Urban District on the appointed day within the meaning of the Act of 1894 and any property or liabilities held or incurred by virtue of or for the purposes of the said powers or duties shall pass to and vest in or attach to the persons and authorities aforesaid. Any property or liabilities of the said Parish Council held or incurred otherwise than by virtue or for the purposes of the said powers or duties shall be transferred to and vest in or attach to the Corporation.

Transfer of
powers &c. of
Parish Council.

Art. XXIX. The accounts of the Parish Council of Fazakerley and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this Order had not been made :

Saving for
audit of ac-
counts of Parish
Council up to
commencement
of Order.

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding :

Provided also that any sum certified by the district auditor to be due from any person shall be paid to the treasurer of the City and may if necessary form the subject of adjustment in accordance with the provisions of Section 62 of the Act of 1888.

Art. XXX. This Order may be cited as the Liverpool (Extension) Order 1905.

Short title.

the amount appearing in that basis or standard as the total annual value of the property in the Township of Fazakerley.

A.D. 1905.

Liverpool
Order.

(2) The Overseers of the Poor of the Township of Fazakerley shall pay to the Corporation all moneys which represent the proceeds of any rate or part of a rate levied by the Overseers of the Poor in the added area in respect of the year ending the thirty-first day of March One thousand nine hundred and six in pursuance of an order of the Guardians of the Poor of the West Derby Union or of a precept issued by the County Council to the Overseers of the Poor for the purpose of county contributions and which have not at the commencement of this Order been paid to the Guardians of the Poor or the County Council as the case may be.

Art. XXVIII.—(1) The person who immediately before the commencement of this Order shall hold the office of Rural District Councillor and Guardian of the Poor for the Township of Fazakerley shall cease to act as a member of the Rural Council but shall continue to act as a member of the Board of Guardians of the West Derby Union as if he had been elected as a Guardian for the said Township and he shall remain in office until the date on which he would have retired if this Order had not been made.

Rural District
Councillor.

(2) Subject to the provisions of this Order the Parish Council of Fazakerley shall cease to exist and any powers and duties transferred by the Act of 1894 to the Parish Council or Parish Meeting of the Township of Fazakerley shall be vested in exerciseable by and imposed on the persons or authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added area had been included in an Urban District on the appointed day within the meaning of the Act of 1894 and any property or liabilities held or incurred by virtue of or for the purposes of the said powers or duties shall pass to and vest in or attach to the persons and authorities aforesaid Any property or liabilities of the said Parish Council held or incurred otherwise than by virtue or for the purposes of the said powers or duties shall be transferred to and vest in or attach to the Corporation.

Transfer of
powers &c. of
Parish Council.

Art. XXIX. The accounts of the Parish Council of Fazakerley and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this Order had not been made :

Saving for
audit of ac-
counts of Parish
Council up to
commencement
of Order.

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding :

Provided also that any sum certified by the district auditor to be due from any person shall be paid to the treasurer of the City and may if necessary form the subject of adjustment in accordance with the provisions of Section 62 of the Act of 1888.

Art. XXX. This Order may be cited as the Liverpool (Extension) Order 1905.

Short title.

A.D. 1905.

Liverpool
Order.

The SCHEDULE above referred to.

PART I.—SANITARY IMPROVEMENT AND GENERAL ACTS.

Session and Chapter.	Title or Short Title.
21 Geo. II. c. xxiv.	An Act for the building a church in the town of Liverpool in the County Palatine of Lancaster and for enlightening and cleaning the streets of the said town and for keeping and maintaining a nightly watch there.
26 Geo. III. c. xii.	An Act for opening making widening and altering certain streets passages and places within the town of Liverpool in the County Palatine of Lancaster for supplying the said town with fresh and wholesome water for removing and preventing nuisances and annoyances therein for appointing additional market places and for extending so much of the powers of an Act of the second year of His present Majesty as relates to hackney coachmen chairmen carters and porters to a certain distance beyond the liberties of the said town.
1 Geo. IV. c. xiii.	An Act for reviving extending and varying the powers of an Act passed in the twenty-sixth year of His late Majesty King George the Third for making and widening certain streets passages and places in the town of Liverpool in the County Palatine of Lancaster and for several other purposes in the said Act mentioned and also for further improving the said town.
5 Vict. (Sess. 2) c. xlv.	An Act for the promotion of the health of the inhabitants of the Borough of Liverpool and the better regulation of buildings in the said Borough.
5 & 6 Vict. c. cvi.	An Act for the improvement good government and police regulation of the Borough of Liverpool.
6 & 7 Vict. c. cix.	An Act for the better protection of property in the Borough of Liverpool from fire.
7 & 8 Vict. c. li.	The Liverpool Fire Prevention Act 1844.
9 & 10 Vict. c. cxxvii.	The Liverpool Sanitary Act 1846.
15 Vict. c. iii. -	The Liverpool Library and Museum Act 1852.
17 Vict. c. xv. -	The Liverpool Sanitary Amendment Act 1854.
18 & 19 Vict. c. clv.	The Liverpool Improvement Act 1855.
21 & 22 Vict. c. lxxx.	The Liverpool Improvement Act 1858.
24 Vict. c. xlii.	The Liverpool Improvement Act 1861.
27 & 28 Vict. c. lxxii.	The Liverpool Improvement Act 1864.
27 & 28 Vict. c. lxxiii.	The Liverpool Sanitary Amendment Act 1864.
28 Vict. c. xx. -	The Liverpool Improvement Act 1865.
30 & 31 Vict. c. clxviii.	The Liverpool Improvement Act 1867.
34 & 35 Vict. c. clxxxiv.	The Liverpool Improvement and Waterworks Act 1871.
41 Vict. c. lxxv.	The Liverpool Improvement Act 1878.
43 & 44 Vict. c. xxviii.	The Liverpool Corporation Act 1880.
43 & 44 Vict. c. ccvii.	The Liverpool Corporation Loans Act 1880.
45 Vict. c. lv. -	The Liverpool Improvement Act 1882.
46 & 47 Vict. c. lxxii.	The Liverpool Improvement Act 1883.
48 & 49 Vict. c. xc.	The Liverpool Improvement Act 1885.

A.D. 1905.

Liverpool
Order.

The SCHEDULE above referred to.

PART I.—SANITARY IMPROVEMENT AND GENERAL ACTS.

Session and Chapter.	Title or Short Title.
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6 & 7 Vict. c. cix.	An Act for the better protection of property in the Borough of Liverpool from fire.
7 & 8 Vict. c. li.	The Liverpool Fire Prevention Act 1844.
9 & 10 Vict. c. cxxvii.	The Liverpool Sanitary Act 1846.
15 Vict. c. iii. -	The Liverpool Library and Museum Act 1852.
17 Vict. c. xv. -	The Liverpool Sanitary Amendment Act 1854.
18 & 19 Vict. c. clv.	The Liverpool Improvement Act 1855.
21 & 22 Vict. c. lxxx.	The Liverpool Improvement Act 1858.
24 Vict. c. xlii.	The Liverpool Improvement Act 1861.
27 & 28 Vict. c. lxxii.	The Liverpool Improvement Act 1864.
27 & 28 Vict. c. lxxiii.	The Liverpool Sanitary Amendment Act 1864.
28 Vict. c. xx. -	The Liverpool Improvement Act 1865.
30 & 31 Vict. c. clxviii.	The Liverpool Improvement Act 1867.
34 & 35 Vict. c. clxxxiv.	The Liverpool Improvement and Waterworks Act 1871.
41 Vict. c. lxxv.	The Liverpool Improvement Act 1878.
43 & 44 Vict. c. xxviii.	The Liverpool Corporation Act 1880.
43 & 44 Vict. c. ccvii.	The Liverpool Corporation Loans Act 1880.
45 Vict. c. lv. -	The Liverpool Improvement Act 1882.
46 & 47 Vict. c. lxxii.	The Liverpool Improvement Act 1883.
48 & 49 Vict. c. xcv.	The Liverpool Improvement Act 1885.

[5 EDW. 7.] *Local Government Board's* [Ch. cviii.]
Provisional Orders Confirmation (No. 12) Act, 1905.

PART I.—SANITARY IMPROVEMENT AND GENERAL ACTS—*continued.*

A.D. 1905.

*Liverpool
Order.*

Session and Chapter.	Title or Short Title.
49 & 50 Vict. c. lxxx. -	The Liverpool Improvement Act 1886.
50 & 51 Vict. c. clxviii. -	The Liverpool Waterworks and Improvement Act 1887.
52 & 53 Vict. c. lxxv. -	The Liverpool Corporation Act 1889.
53 & 54 Vict. c. clxix. -	The Liverpool Corporation Act 1890.
56 & 57 Vict. c. clxxxi. -	The Liverpool Corporation Act 1893.
60 & 61 Vict. c. cxiii. -	The Liverpool City Churches Act 1897.
60 & 61 Vict. c. lxxxvii. -	The Liverpool Corporation Loans Act 1897.
61 & 62 Vict. c. ccli. -	The Liverpool Corporation Act 1898.
63 & 64 Vict. c. xxxviii. -	The Lancashire Inebriates Acts Board Act 1900.
63 & 64 Vict. c. cccxxxvii. -	The Liverpool Corporation Act 1900.
2 Edw. 7. c. ccxlv. -	The Liverpool Corporation Act 1902.
4 Edw. 7. c. c. -	The Liverpool and Wigan Churches Act 1904.

PART II.—WATERWORKS ACTS.

Session and Chapter.	Short Title.
10 & 11 Vict. c. cclxi. -	The Liverpool Corporation Waterworks Act 1847.
13 & 14 Vict. c. lxxx. -	The Liverpool Corporation Waterworks (Amendment) Act 1850.
15 Vict. c. xlviii. -	The Liverpool Corporation Waterworks (Deviations) Act 1852.
18 Vict. c. lxvi. -	The Liverpool Corporation Waterworks Act 1855.
9.8; 10 Vict. c. cclxxxvii. -	The Chorley Waterworks Act 1846.
14 & 15 Vict. c. lxxvii. -	The Chorley Waterworks Act 1851.
19 Vict. c. v. -	The Chorley Waterworks Transfer Act 1856.
23 Vict. c. xii. -	The Liverpool Corporation Waterworks Act 1860.
25 & 26 Vict. c. cvii. -	The Liverpool Corporation Waterworks Act 1862.
29 & 30 Vict. c. cxxvi. -	The Liverpool Corporation Waterworks Act 1866.
34 & 35 Vict. c. clxxxiv. -	The Liverpool Improvement and Waterworks Act 1871.
43 & 44 Vict. c. cxliii. -	The Liverpool Corporation Waterworks Act 1880.
45 Vict. c. lv. -	The Liverpool Improvement Act 1882.
50 & 51 Vict. c. clxvii. -	The Liverpool Waterworks and Improvement Act 1887.
52 & 53 Vict. c. lxxv. -	The Liverpool Corporation Act 1889.
53 & 54 Vict. c. clxix. -	The Liverpool Corporation Act 1890.
56 & 57 Vict. c. clxxxi. -	The Liverpool Corporation Act 1893.
2 Edw. 7. c. ccxi. -	The Liverpool Corporation Act 1902.

[5 EDW. 7.] *Local Government Board's* [Ch. cviii.]
Provisional Orders Confirmation (No. 12) Act, 1905.

PART I.—SANITARY IMPROVEMENT AND GENERAL ACTS—*continued.*

A.D. 1905.

*Liverpool
Order.*

Session and Chapter.	Title or Short Title.
49 & 50 Vict. c. lxxx. -	The Liverpool Improvement Act 1886.
50 & 51 Vict. c. clxviii. -	The Liverpool Waterworks and Improvement Act 1887.
52 & 53 Vict. c. lxxv. -	The Liverpool Corporation Act 1889.
53 & 54 Vict. c. clxix. -	The Liverpool Corporation Act 1890.
56 & 57 Vict. c. clxxxi. -	The Liverpool Corporation Act 1893.
60 & 61 Vict. c. cxiii. -	The Liverpool City Churches Act 1897.
60 & 61 Vict. c. lxxxvii. -	The Liverpool Corporation Loans Act 1897.
61 & 62 Vict. c. ccli. -	The Liverpool Corporation Act 1898.
63 & 64 Vict. c. xxxviii. -	The Lancashire Inebriates Acts Board Act 1900.
63 & 64 Vict. c. cccxxxvii. -	The Liverpool Corporation Act 1900.
2 Edw. 7. c. ccxlv. -	The Liverpool Corporation Act 1902.
4 Edw. 7. c. c. -	The Liverpool and Wigan Churches Act 1904.

PART II.—WATERWORKS ACTS.

Session and Chapter.	Short Title.
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13 & 14 Vict. c. lxxx. -	The Liverpool Corporation Waterworks (Amendment) Act 1850.
15 Vict. c. xlviii. -	The Liverpool Corporation Waterworks (Deviations) Act 1852.
18 Vict. c. lxvi. -	The Liverpool Corporation Waterworks Act 1855.
9.8; 10 Vict. c. cclxxxvii. -	The Chorley Waterworks Act 1846.
14 & 15 Vict. c. lxxvii. -	The Chorley Waterworks Act 1851.
19 Vict. c. v. -	The Chorley Waterworks Transfer Act 1856.
23 Vict. c. xii. -	The Liverpool Corporation Waterworks Act 1860.
25 & 26 Vict. c. cvii. -	The Liverpool Corporation Waterworks Act 1862.
29 & 30 Vict. c. cxxvi. -	The Liverpool Corporation Waterworks Act 1866.
34 & 35 Vict. c. clxxxiv. -	The Liverpool Improvement and Waterworks Act 1871.
43 & 44 Vict. c. cxliii. -	The Liverpool Corporation Waterworks Act 1880.
45 Vict. c. lv. -	The Liverpool Improvement Act 1882.
50 & 51 Vict. c. clxvii. -	The Liverpool Waterworks and Improvement Act 1887.
52 & 53 Vict. c. lxxv. -	The Liverpool Corporation Act 1889.
53 & 54 Vict. c. clxix. -	The Liverpool Corporation Act 1890.
56 & 57 Vict. c. clxxxi. -	The Liverpool Corporation Act 1893.
2 Edw. 7. c. ccxi. -	The Liverpool Corporation Act 1902.

[Ch. cviii.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 12) Act, 1905.

A.D. 1905.

PART III.—TRAMWAYS ACTS.

*Liverpool
Order.*

Session and Chapter.	Short Title.
31 & 32 Vict. c. clxvii. -	The Liverpool Tramways Act 1868.
33 & 34 Vict. c. clxxvi. -	The Liverpool Tramways Act 1870.
34 & 35 Vict. c. clvii. -	The Liverpool Tramways Act 1871.
35 & 36 Vict. c. cxvii. -	The Liverpool Tramways (Purchase) Act 1872.
38 Vict. c. xlviii. -	The Liverpool Tramways Act 1875.
42 & 43 Vict. c. xcvi. -	The Liverpool United Tramways and Omnibus Company's Act 1879.
43 & 44 Vict. c. cxvii. -	The Liverpool Tramways Act 1880.
45 & 46 Vict. c. xcii. -	The Liverpool Tramways Act 1882.
48 & 49 Vict. c. cxlv. -	The Liverpool Tramways Act 1885.
55 & 56 Vict. c. cxxxiv. -	The Liverpool Tramways Act 1892.
60 & 61 Vict. c. civ. -	The Liverpool Corporation Tramways Act 1897.

PART IV.—SANITARY CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
39 & 40 Vict. c. cci.	Local Government Board's Provisional Orders Confirmation (Bath &c.) Act 1876.	Order relating to Liverpool dated 19th June 1876.
39 & 40 Vict. c. ccxxv.	Local Government Board's Provisional Orders Confirmation (Artizans and Labourers Dwellings) Act 1876.	Order relating to Liverpool dated 7th June 1876.
41 & 42 Vict. c. clxii.	Local Government Board's Provisional Orders Confirmation (Bournemouth &c.) Act 1878.	Order relating to Liverpool dated 7th May 1878.
42 & 43 Vict. c. civ.	Local Government Board's Provisional Orders Confirmation (Axminster Union &c.) Act 1879.	Order relating to Liverpool dated 2nd May 1879.
44 & 45 Vict. c. xcvi.	Local Government Board's Provisional Orders Confirmation (Askern &c.) Act 1881.	Order relating to Liverpool dated 5th May 1881.
47 & 48 Vict. c. ccxiv.	Local Government Board's Provisional Orders Confirmation (No. 7) Act 1884.	Order relating to Liverpool dated 31st May 1884.
54 & 55 Vict. c. cvii.	Local Government Board's Provisional Orders Confirmation (No. 11) Act 1891.	Order relating to Standish with Langtree dated 12th May 1891.
56 & 57 Vict. c. cxxxiii.	Local Government Board's Provisional Orders Confirmation (No. 17) Act 1893.	Order relating to Shevington dated 27th May 1893.
59 & 60 Vict. c. cix.	Local Government Board's Provisional Orders Confirmation (No. 17) Act 1896.	The City of Liverpool Order (No. 1) 1896.
60 & 61 Vict. c. cxlii.	Local Government Board's Provisional Orders Confirmation (No. 15) Act 1897.	The Liverpool Order (No. 2) 1897.
1 Edw. VII. c. clii.	Local Government Board's Provisional Orders Confirmation (No. 12) Act 1901.	The Liverpool Order (No. 2) 1901 and the Liverpool Order (No. 3) 1901.
2 Edw. VII. c. lxxxix.	Local Government Board's Provisional Order Confirmation (Housing of Working Classes) Act 1902.	The Liverpool (Housing of Working Classes) Order 1902.
4 Edw. VII. c. lxiii.	Local Government Board's Provisional Order Confirmation (No. 2) Act 1904.	The Liverpool Order 1904.

[Ch. cviii.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 12) Act, 1905.

A.D. 1905.

PART III.—TRAMWAYS ACTS.

*Liverpool
Order.*

Session and Chapter.	Short Title.
31 & 32 Vict. c. clxvii. -	The Liverpool Tramways Act 1868.
33 & 34 Vict. c. clxxvi. -	The Liverpool Tramways Act 1870.
34 & 35 Vict. c. clvii. -	The Liverpool Tramways Act 1871.
35 & 36 Vict. c. cxvii. -	The Liverpool Tramways (Purchase) Act 1872.
38 Vict. c. xlviii. -	The Liverpool Tramways Act 1875.
42 & 43 Vict. c. xcvi. -	The Liverpool United Tramways and Omnibus Company's Act 1879.
43 & 44 Vict. c. cxvii. -	The Liverpool Tramways Act 1880.
45 & 46 Vict. c. xcii. -	The Liverpool Tramways Act 1882.
48 & 49 Vict. c. cxlv. -	The Liverpool Tramways Act 1885.
55 & 56 Vict. c. cxxxiv. -	The Liverpool Tramways Act 1892.
60 & 61 Vict. c. civ. -	The Liverpool Corporation Tramways Act 1897.

PART IV.—SANITARY CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
39 & 40 Vict. c. cci.	Local Government Board's Provisional Orders Confirmation (Bath &c.) Act 1876.	Order relating to Liverpool dated 19th June 1876.
39 & 40 Vict. c. ccxxv.	Local Government Board's Provisional Orders Confirmation (Artizans and Labourers Dwellings) Act 1876.	Order relating to Liverpool dated 7th June 1876.
41 & 42 Vict. c. clxii.	Local Government Board's Provisional Orders Confirmation (Bournemouth &c.) Act 1878.	Order relating to Liverpool dated 7th May 1878.
42 & 43 Vict. c. civ.	Local Government Board's Provisional Orders Confirmation (Axminster Union &c.) Act 1879.	Order relating to Liverpool dated 2nd May 1879.
44 & 45 Vict. c. xcvi.	Local Government Board's Provisional Orders Confirmation (Askern &c.) Act 1881.	Order relating to Liverpool dated 5th May 1881.
47 & 48 Vict. c. ccxiv.	Local Government Board's Provisional Orders Confirmation (No. 7) Act 1884.	Order relating to Liverpool dated 31st May 1884.
54 & 55 Vict. c. cvii.	Local Government Board's Provisional Orders Confirmation (No. 11) Act 1891.	Order relating to Standish with Langtree dated 12th May 1891.
56 & 57 Vict. c. cxxxiii.	Local Government Board's Provisional Orders Confirmation (No. 17) Act 1893.	Order relating to Shevington dated 27th May 1893.
59 & 60 Vict. c. cix.	Local Government Board's Provisional Orders Confirmation (No. 17) Act 1896.	The City of Liverpool Order (No. 1) 1896.
60 & 61 Vict. c. cxlii.	Local Government Board's Provisional Orders Confirmation (No. 15) Act 1897.	The Liverpool Order (No. 2) 1897.
1 Edw. VII. c. clii.	Local Government Board's Provisional Orders Confirmation (No. 12) Act 1901.	The Liverpool Order (No. 2) 1901 and the Liverpool Order (No. 3) 1901.
2 Edw. VII. c. lxxxix.	Local Government Board's Provisional Order Confirmation (Housing of Working Classes) Act 1902.	The Liverpool (Housing of Working Classes) Order 1902.
4 Edw. VII. c. lxiii.	Local Government Board's Provisional Order Confirmation (No. 2) Act 1904.	The Liverpool Order 1904.

PART V.—TRAMWAYS CONFIRMATION ACTS.

A.D. 1905.

Session and Chapter.	Short Title.	Order thereby confirmed.	Liverpool Order.
42 & 43 Vict. c. cxci.	Tramways Orders Confirmation Act 1879	Liverpool Corporation Tramways Order 1879.	
44 & 45 Vict. c. cv.	Tramways Orders Confirmation (No. 1) Act 1881.	Liverpool Corporation Tramways (Extension) Order 1881.	
45 & 46 Vict. c. cxxxviii.	Tramways Orders Confirmation (No. 1) Act 1882.	—	
46 & 47 Vict. c. cxxxi.	Tramways Orders Confirmation (No. 1) Act 1883.	Liverpool Corporation Tramways (Extensions) Order 1883.	
47 & 48 Vict. c. cxii.	Tramways Orders Confirmation (No. 1) Act 1884.	Liverpool Corporation Tramways (Extensions) Order 1884.	
51 & 52 Vict. c. xcv.	Tramways Orders Confirmation (No. 2) Act 1888.	Liverpool Corporation Tramways Order 1888.	
54 & 55 Vict. c. clxii.	Tramways Orders Confirmation (No. 2) Act 1891.	Liverpool Corporation Tramways (Extension) Order 1891.	
57 & 58 Vict. c. cxc.	Tramways Orders Confirmation (No. 1) Act 1894.	Liverpool Corporation Tramways (Extensions) Order 1894.	
61 & 62 Vict. c. ccix.	Tramways Orders Confirmation (No. 1) Act 1898.	Liverpool Corporation Tramways (Extensions) Order 1898.	
63 & 64 Vict. c. ccviii.	Tramways Orders Confirmation (No. 5) Act 1900.	Liverpool Corporation Tramways Order 1900.	
1 Edw. 7. c. cclxxvii.	Tramways Orders Confirmation (No. 1) Act 1901.	Liverpool Corporation Tramways (Extension) Order 1901.	

PART VI.—ELECTRIC LIGHTING CONFIRMATION ACT.

Session and Chapter.	Short Title.	Order thereby confirmed.
59 & 60 Vict. c. cxvii.	Electric Lighting Order Confirmation (No. 3) Act 1896.	Liverpool Electric Lighting Order 1896.

Given under the Seal of Office of the Local Government Board this
Ninth day of May One thousand nine hundred and five.

(L.S.) :

G. W. BALFOUR President.
S. B. PROVIS Secretary.

PART V.—TRAMWAYS CONFIRMATION ACTS.

A.D. 1905.

Session and Chapter.	Short Title.	Order thereby confirmed.	Liverpool Order.
42 & 43 Vict. c. cxci.	Tramways Orders Confirmation Act 1879	Liverpool Corporation Tramways Order 1879.	
44 & 45 Vict. c. cv.	Tramways Orders Confirmation (No. 1) Act 1881.	Liverpool Corporation Tramways (Extension) Order 1881.	
45 & 46 Vict. c. cxxxviii.	Tramways Orders Confirmation (No. 1) Act 1882.	—	
46 & 47 Vict. c. cxxxi.	Tramways Orders Confirmation (No. 1) Act 1883.	Liverpool Corporation Tramways (Extensions) Order 1883.	
47 & 48 Vict. c. cxii.	Tramways Orders Confirmation (No. 1) Act 1884.	Liverpool Corporation Tramways (Extensions) Order 1884.	
51 & 52 Vict. c. xcv.	Tramways Orders Confirmation (No. 2) Act 1888.	Liverpool Corporation Tramways Order 1888.	
54 & 55 Vict. c. clxii.	Tramways Orders Confirmation (No. 2) Act 1891.	Liverpool Corporation Tramways (Extension) Order 1891.	
57 & 58 Vict. c. cxc.	Tramways Orders Confirmation (No. 1) Act 1894.	Liverpool Corporation Tramways (Extensions) Order 1894.	
61 & 62 Vict. c. ccix.	Tramways Orders Confirmation (No. 1) Act 1898.	Liverpool Corporation Tramways (Extensions) Order 1898.	
63 & 64 Vict. c. ccviii.	Tramways Orders Confirmation (No. 5) Act 1900.	Liverpool Corporation Tramways Order 1900.	
1 Edw. 7. c. cclxxvii.	Tramways Orders Confirmation (No. 1) Act 1901.	Liverpool Corporation Tramways (Extension) Order 1901.	

PART VI.—ELECTRIC LIGHTING CONFIRMATION ACT.

Session and Chapter.	Short Title.	Order thereby confirmed.
59 & 60 Vict. c. cxvii.	Electric Lighting Order Confirmation (No. 3) Act 1896.	Liverpool Electric Lighting Order 1896.

Given under the Seal of Office of the Local Government Board this
Ninth day of May One thousand nine hundred and five.

(L.S.) :

G. W. BALFOUR President.
S. B. PROVIS Secretary.

A.D. 1905.

BOROUGH OF POOLE.

*Poole Order. Provisional Order made in pursuance of Sections 54 and 59 of the
Local Government Act 1888.*

To the Mayor Aldermen and Burgesses of the Borough of Poole ; —

To the Court of Quarter Sessions for the said Borough ; —

To the Justices of the Peace for the said Borough ; —

To the Justices of the Peace for the County of Dorset in Quarter
Sessions assembled ; —

To the County Council of Dorset ; —

To the Urban District Council of Branksome ; —

To the Guardians of the Poor of the Poole Union ; —

To the Parkston and Poole Burial Board ; —

To the Overseers of the Poor of each of the Parishes of Branksome
Hamworthy and Poole and of the Tythings of Longfleet and
Parkston ; —

And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the Local
Government Board are empowered to make a Provisional Order for altering
the boundary of any borough ;

And whereas the Borough of Poole is a County of itself and is a Borough
within the meaning of the Local Government Act 1888 and the inhabitants
are a body corporate by the name of the Mayor Aldermen and Burgesses of
the Borough of Poole and act by the Council of the said Borough which now
consists of the Mayor six Aldermen and eighteen Councillors ;

And whereas the said Borough is for the purposes of the election of
Councillors divided into six wards named respectively the No. 1 (or
Hamworthy) Ward the No. 2 (or St. James West) Ward the No. 3 (or
St. James East) Ward the No. 4 (or Parkstone East) Ward the No. 5
(or Longfleet) Ward and the No. 6 (or Parkstone West) Ward ;

And whereas the said Borough is an Urban District of which the Mayor
Aldermen and Burgesses acting by the Council are the Urban District
Council ;

And whereas the said Borough has a separate Court of quarter sessions
commission of the peace court of record recorder sheriff and coroner ;

And whereas by an Agreement made on the Seventeenth day of October
One thousand eight hundred and ninety-one between the Standing Joint Com-
mittee of the County of Dorset the County Council of Dorset and the Council
of the said Borough the police force and establishment of the County of
Dorset and of the said Borough were consolidated ;

A.D. 1905.

BOROUGH OF POOLE.

*Poole Order. Provisional Order made in pursuance of Sections 54 and 59 of the
Local Government Act 1888.*

To the Mayor Aldermen and Burgesses of the Borough of Poole ; —

To the Court of Quarter Sessions for the said Borough ; —

To the Justices of the Peace for the said Borough ; —

To the Justices of the Peace for the County of Dorset in Quarter
Sessions assembled ; —

To the County Council of Dorset ; —

To the Urban District Council of Branksome ; —

To the Guardians of the Poor of the Poole Union ; —

To the Parkston and Poole Burial Board ; —

To the Overseers of the Poor of each of the Parishes of Branksome
Hamworthy and Poole and of the Tythings of Longfleet and
Parkston ; —

And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the Local
Government Board are empowered to make a Provisional Order for altering
the boundary of any borough ;

And whereas the Borough of Poole is a County of itself and is a Borough
within the meaning of the Local Government Act 1888 and the inhabitants
are a body corporate by the name of the Mayor Aldermen and Burgesses of
the Borough of Poole and act by the Council of the said Borough which now
consists of the Mayor six Aldermen and eighteen Councillors ;

And whereas the said Borough is for the purposes of the election of
Councillors divided into six wards named respectively the No. 1 (or
Hamworthy) Ward the No. 2 (or St. James West) Ward the No. 3 (or
St. James East) Ward the No. 4 (or Parkstone East) Ward the No. 5
(or Longfleet) Ward and the No. 6 (or Parkstone West) Ward ;

And whereas the said Borough is an Urban District of which the Mayor
Aldermen and Burgesses acting by the Council are the Urban District
Council ;

And whereas the said Borough has a separate Court of quarter sessions
commission of the peace court of record recorder sheriff and coroner ;

And whereas by an Agreement made on the Seventeenth day of October
One thousand eight hundred and ninety-one between the Standing Joint Com-
mittee of the County of Dorset the County Council of Dorset and the Council
of the said Borough the police force and establishment of the County of
Dorset and of the said Borough were consolidated ;

And whereas in pursuance of the Education Act 1902 the Council of the said Borough are the local education authority for the purposes of Part III. of that Act and the County Council of Dorset are the local education authority for the other purposes of that Act;

A.D. 1905.

Poole Order.

2 Edw. 7. c. 42.

And whereas Burial Boards have been established for the Parish of Poole and the Tything of Parkston respectively within the said Borough;

And whereas the unrepealed provisions of the Local Acts mentioned in Part I. of the schedule to this Order and of the Confirmation Acts mentioned in Part II. of the said schedule so far as the said Confirmation Acts relate to the Provisional Orders mentioned in that schedule are in force in the said Borough;

And whereas all the expenses incurred or payable by the Council of the said Borough in the execution of the Public Health Act 1875 are in pursuance of Section 207 of that Act charged on and defrayed out of the borough fund or borough rate of the said Borough;

38 & 39 Vict.
c. 55.

And whereas on the Thirty-first day of March One thousand nine hundred and five the sum of Eight thousand nine hundred and eighty-three pounds was due and owing by the Corporation to their Treasurer on current account;

And whereas the said Urban District Council have adopted the provisions of—

The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict.
c. 34.

The Public Health Acts Amendment Act 1890; and

53 & 54 Vict.
c. 59.

The Private Street Works Act, 1892;

55 & 56 Vict.
c. 57.

and those provisions are accordingly in force in the said Borough;

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 to 1901 are in force in the said Borough;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.

And whereas the Urban District of Branksome in the County of Dorset immediately adjoins the said Borough and is co-extensive with the Parish of Branksome and is subject to the jurisdiction of the Urban District Council of Branksome;

And whereas the Urban District Council of Branksome have adopted the provisions of—

The Infectious Disease (Prevention) Act 1890;

Parts II. III. and V. of the Public Health Acts Amendment Act 1890;
and

The Private Street Works Act 1892;

and those provisions are accordingly in force in the said Urban District;

And whereas the Public Libraries Acts 1892 to 1901 are in force in the Urban District of Branksome;

And whereas the said Borough comprises the Parishes of Hamworthy and Poole (otherwise known as the Parish of St. James) and the Tythings of

And whereas in pursuance of the Education Act 1902 the Council of the said Borough are the local education authority for the purposes of Part III. of that Act and the County Council of Dorset are the local education authority for the other purposes of that Act;

A.D. 1905.

Poole Order.

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10 & 11 Vict. c. 61.
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and

The Private Street Works Act 1892;

and those provisions are accordingly in force in the said Urban District;

And whereas the Public Libraries Acts 1892 to 1901 are in force in the Urban District of Branksome;

And whereas the said Borough comprises the Parishes of Hamworthy and Poole (otherwise known as the Parish of St. James) and the Tythings of

A.D. 1905.

Poole Order.

Longfleet and Parkston and those Parishes and Tythings and the said Parish of Branksome are included in the Poole Union and two Guardians are elected for the said Parish of Hamworthy three Guardians are elected for the said Tything of Longfleet and the said Parishes of Poole and Branksome and the said Tything of Parkston are each divided into two wards named respectively the Poole North-West Ward the Poole South-East Ward the Branksome East Ward the Branksome West Ward the Parkston East Ward and the Parkston West Ward and three Guardians are elected for each of those Wards;

And whereas in pursuance of the Education Act 1902 the said Parish of Branksome forms part of the area of the County Council of Dorset as the local education authority:

51 & 52 Vict.
c. 41.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred and five;
- (2) The expression "the existing Borough" means the Borough and County of the Town of Poole as it existed immediately prior to the commencement of this Order;
- (3) The expression "the Borough" means the existing Borough as extended by this Order;
- (4) The expression "the Corporation" means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the council;
- (5) The expressions "the Branksome District" and "the Branksome Council" mean respectively the Urban District of Branksome and the Urban District Council of that district;
- (6) The expressions "the County" and "the County Council" mean respectively the Administrative County of Dorset and the County Council of that County;
- (7) The expressions "the Poole Burial Board" and "the Parkston Burial Board" mean respectively the Burial Board for the Parish of Poole and the Burial Board for the Tything of Parkston and the expression "the two Burial Boards" means the Poole Burial Board and the Parkston Burial Board;
- (8) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Poole as extended 1905" and sealed with the official seal of the Local Government Board;

A.D. 1905.

Poole Order.

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- (2) The expression "the existing Borough" means the Borough and County of the Town of Poole as it existed immediately prior to the commencement of this Order;
- (3) The expression "the Borough" means the existing Borough as extended by this Order;
- (4) The expression "the Corporation" means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the council;
- (5) The expressions "the Branksome District" and "the Branksome Council" mean respectively the Urban District of Branksome and the Urban District Council of that district;
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- (8) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Poole as extended 1905" and sealed with the official seal of the Local Government Board;

- (9) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Poole as extended 1905" and sealed with the official seal of the Local Government Board;
- (10) The expression "the added area" means the Branksome District the area of which is coloured blue on the Borough maps;
- (11) The expression "the existing parishes" means unless the contrary intention appears the existing Parishes of Branksome Hamworthy and Poole and the existing Tythings of Longfleet and Parkston;
- (12) The expression "the new parish" means the new Parish of Poole as constituted by this Order;
- (13) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (14) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same; and
- (15) The expressions "the Act of 1756" and "the Act of 1895" mean respectively the Poole Harbour Act 1756 and the Poole Harbour Act 1895 and the expressions "the Confirmation Acts" and "the Provisional Orders" mean respectively the Confirmation Acts and the Provisional Orders mentioned in Part II. of the schedule to this Order.

A.D. 1905.

Poole Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and five:

Commence-
ment of Order.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred and five and of the revision of the basis or standard of the county rate this Order shall operate from the date of the Act of Parliament confirming this Order.

Date of opera-
tion of Order
for parish bur-
gess lists &c.

51 Vict. c. 10.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the Branksome District.

Extension of
Borough and
County of
Town.

- (9) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Poole as extended 1905" and sealed with the official seal of the Local Government Board; A.D. 1905.
Poole Order.
- (10) The expression "the added area" means the Branksome District the area of which is coloured blue on the Borough maps;
- (11) The expression "the existing parishes" means unless the contrary intention appears the existing Parishes of Branksome Hamworthy and Poole and the existing Tythings of Longfleet and Parkston;
- (12) The expression "the new parish" means the new Parish of Poole as constituted by this Order;
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- (14) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same; and
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ment of Order.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred and five and of the revision of the basis or standard of the county rate this Order shall operate from the date of the Act of Parliament confirming this Order. Date of opera-
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for parish bur-
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51 Vict. c. 10.

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Borough and
County of
Town.

A.D. 1905.

*—
Poole Order.*

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough and the County of the Town.

Deposit of
maps.

Art. IV.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the Board of Inland Revenue and to the Board of Agriculture and Fisheries and a copy of the Ward map so certified shall be sent within the said period to the Board of Agriculture and Fisheries.

Copies of map
to be evidence.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as relates to the boundary of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund.

Powers and
duties of
justices &c.
extended.

Art. V.—(1) The powers and duties of the quarter sessions recorder clerk of the peace sheriff and coroner of the existing Borough of the Court of Record and of the judge registrar and other officers thereof of the justices of the peace appointed for the existing Borough and of the clerk to those justices shall extend to and apply throughout the Borough:

Provided that every person committing an offence in any part of the added area prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added area may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Transfer of
lists of
prisoners &c.

(2) Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connexion with any action or proceeding pending or existing at the commencement of this Order and appertaining to the added area shall be delivered turned over or transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office in like manner as if the sheriff of the Borough were as respects the added area the new sheriff in succession to the sheriff of the County.

A.D. 1905.

*—
Poole Order.*

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough and the County of the Town.

Deposit of
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Copies of map
to be evidence.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as relates to the boundary of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund.

Powers and
duties of
justices &c.
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Provided that every person committing an offence in any part of the added area prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added area may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Transfer of
lists of
prisoners &c.

(2) Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connexion with any action or proceeding pending or existing at the commencement of this Order and appertaining to the added area shall be delivered turned over or transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office in like manner as if the sheriff of the Borough were as respects the added area the new sheriff in succession to the sheriff of the County.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added area shall be deemed to have always been part of the Borough and the town clerk of the existing Borough shall be the town clerk of the Borough.

A.D. 1905.

Poole Order.
 Parish burgess
 lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk or the clerk to the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Art. VII. The number of Councillors of the Borough shall be increased from eighteen to twenty-seven and the number of Aldermen of the Borough shall be increased from six to nine.

Number of
 Councillors
 and Aldermen.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into
 wards.

- (1) For the purposes of the election of Councillors the Borough shall be divided into nine wards:
- (2) Of the six existing wards the No. 1 Ward the No. 2 Ward and the No. 3 Ward and the number of Councillors apportioned thereto shall remain unaltered:
- (3) So much of the Borough as is comprised in the existing No. 4 Ward No. 5 Ward and No. 6 Ward and the added area shall be divided into six new wards to be termed respectively the No. 4 Ward the No. 5 Ward the No. 6 Ward the No. 7 Ward the No. 8 Ward and the No. 9 Ward:

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added area shall be deemed to have always been part of the Borough and the town clerk of the existing Borough shall be the town clerk of the Borough.

A.D. 1905.

Poole Order.
 Parish burgess
 lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk or the clerk to the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Art. VII. The number of Councillors of the Borough shall be increased from eighteen to twenty-seven and the number of Aldermen of the Borough shall be increased from six to nine.

Number of
 Councillors
 and Aldermen.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into
 wards.

- (1) For the purposes of the election of Councillors the Borough shall be divided into nine wards:
- (2) Of the six existing wards the No. 1 Ward the No. 2 Ward and the No. 3 Ward and the number of Councillors apportioned thereto shall remain unaltered:
- (3) So much of the Borough as is comprised in the existing No. 4 Ward No. 5 Ward and No. 6 Ward and the added area shall be divided into six new wards to be termed respectively the No. 4 Ward the No. 5 Ward the No. 6 Ward the No. 7 Ward the No. 8 Ward and the No. 9 Ward:

A.D. 1905.

*Poole Order.*Boundaries
of wards.

(4) Each of the said wards shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the number of the ward on each of the ward maps :

(5) Notwithstanding anything in the Municipal Corporations Acts all the Councillors representing the existing No. 4 Ward No. 5 Ward and No. 6 Ward who shall be in office on the First day of November One thousand nine hundred and five shall go out of office on that date :

(6) Three Councillors shall be assigned to each of the six new wards constituted by this Order.

First election
of Councillors
for new wards.

Art. IX.—(1) The first election of Councillors for the six new wards constituted by this Order shall be held on the First day of November One thousand nine hundred and five and the Mayor of the existing Borough shall be the returning officer at the election for those wards Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for any of those wards.

(2) The first election of the three additional Aldermen of the Borough shall take place on the Ninth day of November One thousand nine hundred and five and the three additional Aldermen so elected shall be chosen one from among the Councillors elected for the No. 5 Ward one from among the Councillors elected for the No. 8 Ward and one from among the Councillors elected for the No. 9 Ward or in each case from among the persons qualified to be Councillors whose qualifying property is situate in the ward for which he is elected.

Retirement of
Councillors
and Aldermen
elected in 1905.

Art. X.—(1) The Councillors elected in the year One thousand nine hundred and five for the six new wards of the Borough constituted by this Order shall retire as follows :—

(a) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and six :

(b) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and eight ;

(c) The other Councillor for each ward on the First day of November One thousand nine hundred and seven.

(2) The three additional Aldermen elected for the Borough in the year One thousand nine hundred and five shall retire as follows :—

(a) The Alderman elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and seven :

(b) The other two Aldermen on the Ninth day of November One thousand nine hundred and ten :

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified

A.D. 1905.

*Poole Order.*Boundaries
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(4) Each of the said wards shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the number of the ward on each of the ward maps :

(5) Notwithstanding anything in the Municipal Corporations Acts all the Councillors representing the existing No. 4 Ward No. 5 Ward and No. 6 Ward who shall be in office on the First day of November One thousand nine hundred and five shall go out of office on that date :

(6) Three Councillors shall be assigned to each of the six new wards constituted by this Order.

First election
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Art. IX.—(1) The first election of Councillors for the six new wards constituted by this Order shall be held on the First day of November One thousand nine hundred and five and the Mayor of the existing Borough shall be the returning officer at the election for those wards Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for any of those wards.

(2) The first election of the three additional Aldermen of the Borough shall take place on the Ninth day of November One thousand nine hundred and five and the three additional Aldermen so elected shall be chosen one from among the Councillors elected for the No. 5 Ward one from among the Councillors elected for the No. 8 Ward and one from among the Councillors elected for the No. 9 Ward or in each case from among the persons qualified to be Councillors whose qualifying property is situate in the ward for which he is elected.

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(2) The three additional Aldermen elected for the Borough in the year One thousand nine hundred and five shall retire as follows :—

(a) The Alderman elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and seven :

(b) The other two Aldermen on the Ninth day of November One thousand nine hundred and ten :

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified

the Council of the Borough shall on the Ninth day of November One thousand nine hundred and five or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

A.D. 1905.

Pool's Order.

Art. XI. The unrepealed provisions of the Act of 1756 shall be amended and as amended shall have effect so as to provide as follows:—

Audit of
Borough
accounts

(1) From and after the Thirty-first day of March One thousand nine hundred and six Sections 25 26 and 27 of the Municipal Corporations Act 1882 and Section 246 of the Public Health Act 1875 shall cease to apply to any accounts of the Corporation or of the treasurer of the Borough or of the officers of the Corporation and all accounts of the Corporation and of the treasurer of the Borough and of the officers of the Corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with the council of another borough or with a County Council shall be audited by a district auditor appointed by the Local Government Board in like manner as accounts of an urban authority and their officers are audited under Sections 247 and 250 of the Public Health Act 1875 and those sections and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the Borough and all ratepayers and owners of property in the Borough shall have the like rights and there shall be the same appeal as in the case of that audit Provided that the First Schedule to the District Auditors Act 1879 as applied by this Article shall be modified in the manner described in the Second Schedule to the Local Government Act 1888 :

(2) Nothing in subdivision (1) of this Article shall apply to the audit of the accounts of the Corporation for the financial year ending the Thirty-first day of March One thousand nine hundred and six :

(3) The Corporation may out of the borough fund—

(a) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion

the Council of the Borough shall on the Ninth day of November One thousand nine hundred and five or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

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A.D. 1905.
Poole Order.

of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings;

(b) Pay the reasonable expenses of the Corporation in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the Borough; and

(c) Make reasonable subscriptions not exceeding in the whole twenty guineas in any one year to the funds of hospitals established and maintained in the Borough for the use and benefit of the public:

(4) The Corporation may as part of the expenses of the execution of the Public Health Act 1875 pay or contribute towards the payment of a band or bands of music to perform in any public park pleasure ground or other place of public resort within the Borough. Provided that the amount of any such payment or contribution shall not in any one year exceed the sum of fifty pounds.

Borough Acts
 and Orders.

Art. XII.—(1) The Act of 1895 and the Confirmation Acts so far as those Acts relate to the Provisional Orders together with such of the unrepealed provisions of the Act of 1756 as relate to the lighting of the harbour of Poole or to any subject-matter of the Order of 1891 and the Act of 1895 as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof.

Bournemouth
 Corporation
 Tramways
 Act 1903.

(2) From and after the commencement of this Order the Bournemouth Corporation Tramways Act 1903 so far as that Act relates to the sale and transfer to the Corporation and the Branksome Council of part of the undertaking of the Poole and District Electric Traction Company Limited and the leasing of the same to the Mayor Aldermen and Burgesses of the Borough of Bournemouth shall have effect as if references to the Corporation and the Borough were substituted in that Act for references to the Branksome Council and the Branksome District and the agreement set forth in the Second Schedule to the said Act shall have effect with regard to the Corporation as if the Corporation had originally been a party thereto instead of the Branksome Council.

Byelaws &c.

Art. XIII.—(1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing

A.D. 1905.
Poole Order.

of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings;

(b) Pay the reasonable expenses of the Corporation in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the Borough; and

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Art. XIII.—(1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing

Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed.

A.D. 1905.
Poolle Order.

(2) The byelaws made by the Branksome Council or their predecessors relating to the trade of a gut-scraper to hackney carriages and to tents vans sheds and similar structures which at the said date are in force in the Branksome District shall thenceforth until the said byelaws are altered or repealed apply to the Borough in the like manner and with the like effect as if the same had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Branksome Council or their predecessors and the Branksome District respectively.

(3) All byelaws and regulations made by the Branksome Council or their predecessors other than those referred to in subdivision (2) of this Article or in subdivision (4) of Article XXI. of this Order and in force immediately before the commencement of this Order in any part of the added area shall on that date cease to be in force except as regards any work commenced before that date or any work for which plans shall either have been approved by the Branksome Council before that date or shall have been sent to the surveyor or clerk to the Branksome Council one month at least before that date and shall not have been disapproved by that council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Branksome Council or their predecessors and the Branksome District respectively. Provided that any proceedings which might have been taken by the Branksome Council against any person for any offence committed before the commencement of this Order against any byelaws and regulations made by the Branksome Council or their predecessors and in force on that date in any part of the added area may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for the Branksome Council.

Art. XIV. For the purposes and subject to the provisions of the Education Acts 1870 to 1902—

Transfer of
 public elemen-
 tary schools &c.
 to Corporation.

- (1) All public elementary schools (including the sites and schoolhouses) provided by the local education authority and situate within any part of the added area with the furniture and fittings of the schoolhouses shall by virtue of this Order vest in and be transferred to the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by

Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed.

A.D. 1905.
Poolle Order.

(2) The byelaws made by the Branksome Council or their predecessors relating to the trade of a gut-scraper to hackney carriages and to tents vans sheds and similar structures which at the said date are in force in the Branksome District shall thenceforth until the said byelaws are altered or repealed apply to the Borough in the like manner and with the like effect as if the same had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Branksome Council or their predecessors and the Branksome District respectively.

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A.D. 1905.

Poolc Order.

or attach to the County Council in respect exclusively of the said public elementary schools furniture or fittings or with respect to the officers teachers and servants of the said public elementary schools shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority :

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision :

Mortgage debts
in respect of
transferred
schools.

- (2) The liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and any furniture or fittings transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable :

Education bye-
laws.

- (3) Any byelaws in force in the existing Borough at the commencement of this Order shall thenceforth apply to the Borough until revoked or altered and from and after that date any byelaws then in force in the added area shall cease to be in force.

Town clerk and
other officers
continued.

Art. XV.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Borough
auditors.

(2) The auditors who are in office at the commencement of this Order shall continue in office until the Thirty-first day of March One thousand nine hundred and six and while in office shall for the purposes of the Municipal Corporations Acts be the borough auditors.

Compensation
to existing
officers.

Art. XVI.—(1) The provisions of sub-section (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Branksome Council with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation.

Provisional Orders Confirmation (No. 12) Act, 1905.

A.D. 1905.

Poolc Order.

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Town clerk and
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(2) Every clerk to justices and county coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and any other officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of sub-division (1) of this article regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and subject to the provisions of this Order shall be paid out of the borough fund and borough rate of the Borough and the provisions of sub-sections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

A.D. 1905.

Poole Order.

(3) For the purposes of subdivision (2) of this Article any such officer or servant whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence hereof and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XVII.—(1) If at the commencement of this Order any action or proceeding or any cause of action or proceeding is pending or existing by or against the Branksome Council the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Actions &c.
not to abate.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Branksome Council or their predecessors shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Branksome Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Saving for
contracts &c.

Art. XVIII. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of

Corporation
property &c.

(2) Every clerk to justices and county coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and any other officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of sub-division (1) of this article regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and subject to the provisions of this Order shall be paid out of the borough fund and borough rate of the Borough and the provisions of sub-sections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

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Corporation
property &c.

A.D. 1905. the existing Borough and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

—
Poole Order.

Liquidation of
current debts
and liabilities
by Branksome
Council.

Art. XIX. The Branksome Council shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Property &c. of
Branksome
Council.

Art. XX. Subject to the provisions of this Order—

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Council shall by virtue of this Order vest in and be transferred and attach to the Corporation as Urban District Council :

Abolition of
Branksome
Council.

(2) The Branksome Council shall at the commencement of this Order be abolished and cease to exist :

Arrears of
rates &c.

(3) All arrears of rates made by the Branksome Council and all other payments which at the commencement of this Order are due or owing to that Council may be collected and recovered by the Corporation :

(4) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in sub-sections (5) (6) and (7) thereof the expression " Council " included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said sub-section (6) that sub-section empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction :

Provided that where the authority affected by this Order or by anything done in pursuance of this Order are the Board of Guardians of a Poor Law Union Section 62 of the Act of 1888 shall apply with respect to any necessary adjustment with the modifications specified in the First Schedule to the Poor Law (Dissolution of School Districts and Adjustments) Act 1903.

Transfer of
property and
liabilities and
abolition of the
two Burial
Boards.

Art. XXI.—(1) Subject to any adjustment which may become necessary in consequence of this Order all property and liabilities which immediately before the commencement of this Order are vested in or attach to either of the two Burial Boards shall by virtue of this Order vest in and be

A.D. 1905. the existing Borough and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

—
Poole Order.

Liquidation of
current debts
and liabilities
by Branksome
Council.

Art. XIX. The Branksome Council shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Property &c. of
Branksome
Council.

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(2) The Branksome Council shall at the commencement of this Order be abolished and cease to exist :

Arrears of
rates &c.

(3) All arrears of rates made by the Branksome Council and all other payments which at the commencement of this Order are due or owing to that Council may be collected and recovered by the Corporation :

(4) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in sub-sections (5) (6) and (7) thereof the expression " Council " included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said sub-section (6) that sub-section empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction :

Provided that where the authority affected by this Order or by anything done in pursuance of this Order are the Board of Guardians of a Poor Law Union Section 62 of the Act of 1888 shall apply with respect to any necessary adjustment with the modifications specified in the First Schedule to the Poor Law (Dissolution of School Districts and Adjustments) Act 1903.

Transfer of
property and
liabilities and
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Boards.

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transferred and attach to the Corporation as Urban District Council and subject as herein-after provided the two Burial Boards shall be abolished and cease to exist. Provided that the persons who immediately before the commencement of this Order are members of either of the two Burial Boards shall continue in office for a period not exceeding two years or for such longer period as the Local Government Board on the request of the Corporation may by order allow for the purposes of any adjustment of the property income debts liabilities and expenses of the Burial Board and the said persons and the survivors of those persons shall represent the interests of the Burial Board and of the area subject to the jurisdiction of the Burial Board in any such adjustment.

A.D. 1905.

Poole Order.

(2) Subject to the provisions of this Order every burial ground vested in and transferred to the Corporation by virtue of subdivision (1) of this Article shall be held maintained and managed by the Corporation as if it were a cemetery acquired and constructed under the powers of the Public Health (Interments) Act 1879 and the provisions of that Act and of the enactments incorporated therewith or applied thereby shall extend and apply to the burial ground but not so as to require in relation to the burial ground or its use any such consent as is mentioned in Section 10 of the Cemeteries Clauses Act 1847.

(3) Until the Corporation in pursuance of the powers conferred upon them by subdivision (2) of this Article make any byelaws regulations table of fees or charges in relation to any burial ground vested in and transferred to them under subdivision (1) of this Article all fees payments and sums fixed and settled and receivable by either of the two Burial Boards immediately prior to the commencement of this Order shall be receivable by the Corporation.

(4) The byelaws regulations tables of fees and charges made by the Branksome Council in relation to the cemetery provided by them under the Public Health (Interments) Act 1879 and in force immediately before the commencement of this Order shall until the said byelaws are altered or repealed continue in force in the like manner and with the like effect with respect to that cemetery as if the same had been made by the Corporation and as if references to the Corporation and the Borough were substituted therein for references to the Branksome Council and the Branksome District.

(5) Nothing in this Order shall prejudice or affect any right of burial which any parishioner or inhabitant of the existing parishes of Branksome or Poole or of the Tything of Parkston may have acquired prior to the commencement of this Order in relation to any cemetery or burial ground provided for any area within the Borough or any exclusive right of burial or any right of one or more burials or any right of placing any monument tablet or gravestone or any similar right which any person may have acquired prior to the commencement of this Order in relation to the cemetery or burial ground,

Saving rights
of burial.

transferred and attach to the Corporation as Urban District Council and subject as herein-after provided the two Burial Boards shall be abolished and cease to exist. Provided that the persons who immediately before the commencement of this Order are members of either of the two Burial Boards shall continue in office for a period not exceeding two years or for such longer period as the Local Government Board on the request of the Corporation may by order allow for the purposes of any adjustment of the property income debts liabilities and expenses of the Burial Board and the said persons and the survivors of those persons shall represent the interests of the Burial Board and of the area subject to the jurisdiction of the Burial Board in any such adjustment.

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Poole Order.

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(3) Until the Corporation in pursuance of the powers conferred upon them by subdivision (2) of this Article make any byelaws regulations table of fees or charges in relation to any burial ground vested in and transferred to them under subdivision (1) of this Article all fees payments and sums fixed and settled and receivable by either of the two Burial Boards immediately prior to the commencement of this Order shall be receivable by the Corporation.

(4) The byelaws regulations tables of fees and charges made by the Branksome Council in relation to the cemetery provided by them under the Public Health (Interments) Act 1879 and in force immediately before the commencement of this Order shall until the said byelaws are altered or repealed continue in force in the like manner and with the like effect with respect to that cemetery as if the same had been made by the Corporation and as if references to the Corporation and the Borough were substituted therein for references to the Branksome Council and the Branksome District.

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Saving rights
of burial.

A.D. 1905.

—
Poole Order.
 Adoptive Acts.

Art. XXII. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Private Street Works Act 1892 and the Public Libraries Acts 1892 to 1901 shall be in force within and apply to the Borough as if the same had been adopted therein.

Powers of
 Branksome
 Council under
 Section 33 of
 Act of 1894
 applied to
 Borough.

Art. XXIII. Subject to the provisions of this Order and of any order which the Local Government Board may hereafter make any order heretofore made by the Local Government Board and conferring upon the Branksome Council any of the matters mentioned in Section 33 of the Act of 1894 and in that order shall be deemed to have effect as if for any reference in the said order to the Branksome Council there were substituted a reference to the Corporation and as if any reference therein to a parish wholly comprised within the Branksome District extended and applied to the new Parish.

Audit of
 accounts of
 Branksome
 Council.

Art. XXIV. The accounts of the Branksome Council and of the committees and officers of that Council up to the commencement of this Order shall be audited in the like manner and subject to the like incidents and consequences as if this Order had not been made :

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding :

Provided also that any sum certified by the district auditor to be due from any person shall be paid to the treasurer of the Borough.

Police.

Art. XXV. From and after the commencement of this Order the agreement dated the Seventeenth day of October One thousand eight hundred and ninety-one and made between the Standing Joint Committee of the County the County Council and the Corporation for the consolidation of the police force and establishment of the County and of the existing Borough shall continue in force and have effect in all respects as if the Borough were therein referred to instead of the existing Borough.

Mode of
 defraying
 expenses of
 Corporation.

Art. XXVI. Subject to the provisions of this Order all expenses incurred or payable or to be incurred or become payable by the Corporation in the execution of the Public Health Acts or of any Public General Act under which the expenses of the Council of a Borough are to be defrayed as expenses of the execution of the Public Health Acts or are to be charged on and defrayed out of the district fund and general district rate for the purposes of the Public Health Act 1875 shall notwithstanding anything in Section 207 of the Public Health Act 1875 be charged on and defrayed out of a district fund to be established and a general district rate to be levied by the Corporation under the Public Health Act 1875 and all the provisions of that Act with respect to the district fund and general district rate for the purposes of the Public Health Acts shall apply and have effect accordingly :

Special pro-
 visions appli-
 cable to period
 of four years.

Provided that during a period of four years from the commencement of this Order the Corporation for the purpose of defraying any expenses which are chargeable on the district fund and which the district fund is insufficient

A.D. 1905.

—
Poole Order.
 Adoptive Acts.

Art. XXII. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Private Street Works Act 1892 and the Public Libraries Acts 1892 to 1901 shall be in force within and apply to the Borough as if the same had been adopted therein.

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Art. XXIII. Subject to the provisions of this Order and of any order which the Local Government Board may hereafter make any order heretofore made by the Local Government Board and conferring upon the Branksome Council any of the matters mentioned in Section 33 of the Act of 1894 and in that order shall be deemed to have effect as if for any reference in the said order to the Branksome Council there were substituted a reference to the Corporation and as if any reference therein to a parish wholly comprised within the Branksome District extended and applied to the new Parish.

Audit of
 accounts of
 Branksome
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Art. XXIV. The accounts of the Branksome Council and of the committees and officers of that Council up to the commencement of this Order shall be audited in the like manner and subject to the like incidents and consequences as if this Order had not been made :

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding :

Provided also that any sum certified by the district auditor to be due from any person shall be paid to the treasurer of the Borough.

Police.

Art. XXV. From and after the commencement of this Order the agreement dated the Seventeenth day of October One thousand eight hundred and ninety-one and made between the Standing Joint Committee of the County the County Council and the Corporation for the consolidation of the police force and establishment of the County and of the existing Borough shall continue in force and have effect in all respects as if the Borough were therein referred to instead of the existing Borough.

Mode of
 defraying
 expenses of
 Corporation.

Art. XXVI. Subject to the provisions of this Order all expenses incurred or payable or to be incurred or become payable by the Corporation in the execution of the Public Health Acts or of any Public General Act under which the expenses of the Council of a Borough are to be defrayed as expenses of the execution of the Public Health Acts or are to be charged on and defrayed out of the district fund and general district rate for the purposes of the Public Health Act 1875 shall notwithstanding anything in Section 207 of the Public Health Act 1875 be charged on and defrayed out of a district fund to be established and a general district rate to be levied by the Corporation under the Public Health Act 1875 and all the provisions of that Act with respect to the district fund and general district rate for the purposes of the Public Health Acts shall apply and have effect accordingly :

Special pro-
 visions appli-
 cable to period
 of four years.

Provided that during a period of four years from the commencement of this Order the Corporation for the purpose of defraying any expenses which are chargeable on the district fund and which the district fund is insufficient

to meet shall raise the necessary contributions from that part of the Borough which comprises the area of the existing Borough and from the added area in the proportion which in the first case the assessable value of the area for the purposes of Section 3 (2) of the Agricultural Rates Act 1896 and which in the second case the assessable value of the area for the purposes of a general district rate bears to the amount representing the aggregate assessable value of the areas in the two cases aforesaid :

A.D. 1905.

Poole Order.

Provided also that for the purpose of defraying a contribution to the district fund the Corporation shall raise the sum required from that part of the Borough which comprises the area of the existing Borough by means of a rate in the nature of a borough rate over that area and from the added area by the levy of a rate in the nature of a general district rate over that area.

Art. XXVII.—(1) The liability for repayment of any sums borrowed by the Branksome Council and by the Parkston Burial Board or of so much of any of those sums as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Corporation and so much as will at the commencement of this Order be outstanding in respect of any sum borrowed as aforesaid with so much of any sums borrowed by the Corporation to defray any expense mentioned in Article XXVI. of this Order shall during a period of four years from the commencement of this Order be charged on the district fund and shall be defrayed as contributions to the district fund are required by the said Article to be defrayed and on the expiration of the said period any amount outstanding in respect of any loan or of the interest accruing due on any loan mentioned in this subdivision shall by virtue of this Order be charged upon and defrayed out of the district fund and general district rate and so much of any other sums borrowed by the Corporation as will at the commencement of this Order be owing and charged on the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged on the borough fund and borough rate of the Borough and all sums repayable in respect of any loan to which this subdivision relates shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Mortgage debts
of Branksome
Council Park-
ston Burial
Board and
Corporation.

(2) In relation to any loan which during a period of four years from the commencement of this Order the Corporation may contract for the purpose of defraying any such expenses as are mentioned in Article XXVI. the rates on the credit of which the Corporation may borrow shall be the rates leviable in pursuance of the said Article for the purpose of defraying contributions to the district fund and on the expiration of the said period the general district rate shall be substituted for the rates leviable as aforesaid.

(3) Nothing in this Order shall prejudice or affect any mortgage or other security which may have been given or which during a period of four years

Saving for
existing securi-
ties and rights.

to meet shall raise the necessary contributions from that part of the Borough which comprises the area of the existing Borough and from the added area in the proportion which in the first case the assessable value of the area for the purposes of Section 3 (2) of the Agricultural Rates Act 1896 and which in the second case the assessable value of the area for the purposes of a general district rate bears to the amount representing the aggregate assessable value of the areas in the two cases aforesaid :

A.D. 1905.

Poole Order.

Provided also that for the purpose of defraying a contribution to the district fund the Corporation shall raise the sum required from that part of the Borough which comprises the area of the existing Borough by means of a rate in the nature of a borough rate over that area and from the added area by the levy of a rate in the nature of a general district rate over that area.

Art. XXVII.—(1) The liability for repayment of any sums borrowed by the Branksome Council and by the Parkston Burial Board or of so much of any of those sums as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Corporation and so much as will at the commencement of this Order be outstanding in respect of any sum borrowed as aforesaid with so much of any sums borrowed by the Corporation to defray any expense mentioned in Article XXVI. of this Order shall during a period of four years from the commencement of this Order be charged on the district fund and shall be defrayed as contributions to the district fund are required by the said Article to be defrayed and on the expiration of the said period any amount outstanding in respect of any loan or of the interest accruing due on any loan mentioned in this subdivision shall by virtue of this Order be charged upon and defrayed out of the district fund and general district rate and so much of any other sums borrowed by the Corporation as will at the commencement of this Order be owing and charged on the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged on the borough fund and borough rate of the Borough and all sums repayable in respect of any loan to which this subdivision relates shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Mortgage debts
of Branksome
Council Park-
ston Burial
Board and
Corporation.

(2) In relation to any loan which during a period of four years from the commencement of this Order the Corporation may contract for the purpose of defraying any such expenses as are mentioned in Article XXVI. the rates on the credit of which the Corporation may borrow shall be the rates leviable in pursuance of the said Article for the purpose of defraying contributions to the district fund and on the expiration of the said period the general district rate shall be substituted for the rates leviable as aforesaid.

(3) Nothing in this Order shall prejudice or affect any mortgage or other security which may have been given or which during a period of four years

Saving for
existing securi-
ties and rights.

A.D. 1905.

Poole Order.
Settlement and
irremovability
of the poor.

Art. XXXVI.—(1) Every person who has acquired or who on or before the commencement of this Order acquires or is in the course of acquiring a settlement in any of the existing parishes or tythings or a status of irremovability from the Poole Union by reason of residence in any of the existing parishes or tythings shall be deemed to have acquired to acquire or to be in the course of acquiring a settlement in the new parish or a status of irremovability from the Poole Union.

(2) For the purposes of subdivision (1) of this Article and for any other purposes connected with settlement or removal in relation to cases affected by this Order any residence completed any act or thing done any status condition right or privilege acquired or created or in the course of acquisition or creation prior to the appointed day in any of the existing parishes or tythings or in the Poole Union by reason of residence in any of the existing parishes or tythings shall have effect as if the residence had been completed the act or thing had been done the status condition right or privilege had been acquired or created or had been in the course of acquisition or creation in the new parish or in the Poole Union.

Property &c.
of existing
parishes to
become pro-
perty &c. of
new parish.

Art. XXXVII.—(1) All property and liabilities of the existing parishes and tythings including all property held under any trust for any of those parishes and tythings or the inhabitants or parishioners thereof shall become the property and liabilities of the new parish and in the case of property held in trust as aforesaid shall be held in trust for the new parish or the inhabitants or parishioners thereof for the same purposes as heretofore.

(2) Any balances standing in the books of the Guardians of the Poor of the Poole Union to the credit of the existing parishes and tythings or any of those parishes and tythings shall be carried to the credit of the new parish and any balance owing by the existing parishes and tythings or any of those parishes and tythings shall be deemed to be owing by the new parish.

Saving for
contribution
orders and
precepts.

Art. XXXVIII. Notwithstanding the alterations effected by this Order all contribution orders made by the Guardians of the Poor of the Poole Union before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates.

Art. XXXIX. All arrears of rates made by the Overseers of the Poor and due or owing at the commencement of this Order in respect of hereditaments in any of the existing parishes or tythings shall be collected and recovered as if this Order had not been made by the Overseers of the Poor of the new parish.

Assistant Over-
seers and col-
lectors of poor
rates.

Art. XL. Any person holding at the commencement of this Order the office of assistant overseer or collector of poor rates for any of the existing parishes or tythings shall continue to hold and perform the duties of his office within the same area as at the commencement of this Order. The remuneration to which at the commencement of this Order any such assistant overseer or collector of poor rates is entitled for performing the duties of his

A.D. 1905.

Poole Order.
Settlement and
irremovability
of the poor.

Art. XXXVI.—(1) Every person who has acquired or who on or before the commencement of this Order acquires or is in the course of acquiring a settlement in any of the existing parishes or tythings or a status of irremovability from the Poole Union by reason of residence in any of the existing parishes or tythings shall be deemed to have acquired to acquire or to be in the course of acquiring a settlement in the new parish or a status of irremovability from the Poole Union.

(2) For the purposes of subdivision (1) of this Article and for any other purposes connected with settlement or removal in relation to cases affected by this Order any residence completed any act or thing done any status condition right or privilege acquired or created or in the course of acquisition or creation prior to the appointed day in any of the existing parishes or tythings or in the Poole Union by reason of residence in any of the existing parishes or tythings shall have effect as if the residence had been completed the act or thing had been done the status condition right or privilege had been acquired or created or had been in the course of acquisition or creation in the new parish or in the Poole Union.

Property &c.
of existing
parishes to
become pro-
perty &c. of
new parish.

Art. XXXVII.—(1) All property and liabilities of the existing parishes and tythings including all property held under any trust for any of those parishes and tythings or the inhabitants or parishioners thereof shall become the property and liabilities of the new parish and in the case of property held in trust as aforesaid shall be held in trust for the new parish or the inhabitants or parishioners thereof for the same purposes as heretofore.

(2) Any balances standing in the books of the Guardians of the Poor of the Poole Union to the credit of the existing parishes and tythings or any of those parishes and tythings shall be carried to the credit of the new parish and any balance owing by the existing parishes and tythings or any of those parishes and tythings shall be deemed to be owing by the new parish.

Saving for
contribution
orders and
precepts.

Art. XXXVIII. Notwithstanding the alterations effected by this Order all contribution orders made by the Guardians of the Poor of the Poole Union before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates.

Art. XXXIX. All arrears of rates made by the Overseers of the Poor and due or owing at the commencement of this Order in respect of hereditaments in any of the existing parishes or tythings shall be collected and recovered as if this Order had not been made by the Overseers of the Poor of the new parish.

Assistant Over-
seers and col-
lectors of poor
rates.

Art. XL. Any person holding at the commencement of this Order the office of assistant overseer or collector of poor rates for any of the existing parishes or tythings shall continue to hold and perform the duties of his office within the same area as at the commencement of this Order. The remuneration to which at the commencement of this Order any such assistant overseer or collector of poor rates is entitled for performing the duties of his

[5 Edw. 7.] *Local Government Board's* [Ch. cviii.]
Provisional Orders Confirmation (No. 12) Act, 1905.

office shall be paid out of the poor rates of the new parish of Poole and any such assistant overseer or collector of poor rates shall continue to hold office by the same tenure and upon the same terms and conditions as heretofore and while performing the same duties shall receive not less remuneration than heretofore. A.D. 1905.
Poole Order.

Art. XLI. This Order may be cited as the Poole (Extension) Order Short title.
1905

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title.
29 Geo. II. -	The Poole Harbour Act 1756.
58 & 59 Vict. c. lxx.	The Poole Harbour Act 1895.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
54 & 55 Vict. c. clix.	Pier and Harbour Order Confirmation (No. 3) Act 1891.	The Poole Harbour Order 1891.
57 & 58 Vict. c. cxii.	Pier and Harbour Orders Confirmation (No. 3) Act 1894.	The Poole Harbour Order 1894.

Given under the Seal of Office of the Local Government Board this
Tenth day of May One thousand nine hundred and five.

(L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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[5 Edw. 7.] *Local Government Board's* [Ch. cviii.]
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